

TOPIC 6 : American Period**List of Reading Materials:**

- 1. Treaty of Paris**
- 2. McKinley's Prayer**
- 3. Benevolent Assimilation Proclamation**
- 4. Our Campaign for Independence**
- 5. The Corner Stone of Philippine Independence**
- 6. The Jones Law of 1916**
- 7. The Philippine Organic Act of 1902**
- 8. Diary of Carrie Chapman**
- 9. The Philippine Independence Act**

INTRODUCTORY ESSAY FOR THE AMERICAN PERIOD IN THE PHILIPPINES

The readings are designed to offer to the students the primary sources that will provide them the context to be able to understand the narrative of the American occupation of the Philippines. Presented in chronological order, the collection will let them read first the “Treaty of Paris of December 10, 1898.” This peace agreement allowed the United States to gain possession of the Philippine Islands. The next reading material is “McKinley’s Prayer.” The significance of this excerpt is that it gives an insider’s view of how President McKinley arrived at his decision to issue his famous “Benevolent Assimilation” Policy. Citing that it was God’s will that the US should annex the Philippine Islands after praying hard supported the idea that occupying the Philippine islands had a blessing from God and should be seen from the vantage point of the Christian zeal of missionary work by way of spreading the good news to the natives of the archipelago. The Philippine Bill of 1902 guides the students to appreciate one of the most important decrees enacted by the American government in the Philippines. They will realize that the most important element contained in the bill was the clause that called for the creation of a lower legislative branch with elected Filipino representatives as legislators that will comprise the Philippine Assembly. The next reading presents an excerpt of Gov. General Francis Burton Harrison. This reading depicts the personal view of Harrison on the Filipino leaders and politicians who were emerging as the new leaders of the government as well as the challenges he faced in administering the colony. Following this excerpt is another excerpt from a book written by Filipinos Palma and Kalaw that provides clear insights and details on why the respective political parties were organized including the discussion of their political platforms.

The Jones Law of 1916 is the first formal and official declaration of the United States' commitment to grant independence to the Philippines. This Law replaced the Philippine Organic Act of 1902 (Philippine Bill of July 1, 1902) that served as the de facto initial constitution of the Philippine Islands. The emphasis of this reading is the fact that among the salient provisions of the Autonomy Act of 1916 was the creation of an all Filipino legislature which created the Philippine Senate to replace the Philippine Commission which had served as the upper chamber of the legislature. The next reading is an excerpt from the diary of Carrie Chapman Catt which led to the creation of a movement for women to take up leadership roles in politics. Lastly, a significant reading material for students to read about the American Period is the text of the Tydings-McDuffie Act of 1934. Known as the Philippine Independence Act of 1934, this was a U.S. law that provided for Philippine independence. Because of this, the Filipinos will now be motivated to prepare for the establishment of the Commonwealth government..

Treaty of Peace between the United States of America and the Kingdom of Spain (Treaty of Paris), signed in Paris, December 10, 1898

By the President of the United States of America

[Signed in Paris, December 10, 1898]

ANNOTATION

The Treaty of Paris, signed on December 10, 1898, was a peace agreement between Spain and the United States that ended the Spanish-American War. Under the treaty, Cuba gained independence from Spain, and the United States gained possession of the Philippine Islands, Puerto Rico, other islands in the West Indies, and Guam.

The commission met from October to December 1898 and agreed upon that some colonies of Spain including the Philippines be ceded to the United States. On 10 December 1898, without Filipino representation and consultation, the Treaty of Paris was concluded. It was signed by representatives from the US Government namely: Cushman Davis, William Frye, Whitelaw Reid, George Gray, and William Day. The Spanish delegation on the other hand was composed of Eugenio Montero Rios, Buenaventura Abarzuza, Jose de Garnica, Wenceslao Ramirez de Villa-Urrutia, and Rafael Cerero.

The Treaty of Paris was made up of thirteen articles that stipulate the conditions, obligations, as well as benefits that the Governments of Spain and the United States could enjoy over the ceded islands. It also stated that an amount of \$20, 000,000 will be paid by the US to Spain after the treaty's ratification.

The treaty did not go into effect until after its ratification. Initially, many American senators did not favor it for they thought of it as unfair to the Filipinos and a manifestation of imperialism. Unfortunately, the Filipino-American hostilities that erupted on 4 February 1899 in the Philippines (known as the "First Shot") changed the course of the tide. American propaganda made it appear that the Filipinos instigated the hostility causing the breach of alliance and trust. Two days after, the treaty was ratified with two-thirds of the majority in the US Senate.

The American and Spanish governments reckoned the Treaty of Paris as an instrument of Peace, but the Filipinos resented its conclusion and ratification for they were not consulted and considered in its making. Further, the provisions of the treaty were not for the benefit of the Filipinos but the imperialists, instead. With the signing and ratification of the Treaty of Paris, the bitter relations between the Americans and the Filipinos turned bitterer and eventually lead to another episode that was known as the Filipino-American

A Proclamation.

Whereas, a Treaty of Peace between the United States of America and Her Majesty the Queen Regent of Spain, in the name of her August Son, Don Alfonso XIII, was concluded and signed by their respective plenipotentiaries at Paris on the tenth day of December, 1898, the original of which Convention being in the English and Spanish languages, is word for word as follows:

THE UNITED STATES OF AMERICA AND HER MAJESTY THE QUEEN REGENT OF SPAIN, IN THE NAME OF HER AUGUST SON DON ALFONSO XIII, desiring to end the

state of war now existing between the two countries, have for that purpose appointed as Plenipotentiaries:

THE PRESIDENT OF THE UNITED STATES,
WILLIAM R. DAY, CUSHMAN K. DAVIS, WILLIAM P. FRYE, GEORGE GRAY, and
WHITELAW REID, citizens of the United States;

AND HER MAJESTY THE QUEEN REGENT OF SPAIN,
DON EUGENIO MONTERO RIOS, President of the Senate
DON BUENAVENTURA De ABARZUZA, Senator of the Kingdom and ex-Minister of the
Crown,
DON JOSE DE GARNICA, Deputy to the Cortes and Associate Justice of the Supreme Court;
DON WENCESLAO RAMIREZ DE VILLA-URRUTIA, Envoy Extraordinary and Minister
Plenipotentiary at Brussels, and
DON RAFAEL CERERO, General of Division;

Who, having assembled in Paris, and having exchanged their full powers, which were found to be in due and proper form, have, after discussion of the matters before them, agreed upon the following articles:

ARTICLE I

Spain relinquishes all claim of sovereignty over and title to Cuba.

And as the island is, upon its evacuation by Spain, to be occupied by the United States, the United States will, so long as such as occupation shall last, assume and discharge the obligations that may under international law result from the fact of its occupation, for the protection of life and property.

ARTICLE II

Spain cedes to the United States the island of Porto Rico and other islands now under Spanish sovereignty in the West Indies, and the island of Guam in the Marianas or Ladrões.

ARTICLE III

Spain cedes to the United States the archipelago known as the Philippine Islands, and comprehending the islands lying within the following line:

A line running from west to east along or near the twentieth parallel of north latitude, and through the middle of the navigable channel of Bachi, from the one hundred and eighteenth (118th) to the one hundred and twenty seventh (127th) degrees meridian of longitude east of Greenwich, thence along the one hundred and twenty seventh (127th) degree meridian of longitude east of Greenwich to the parallel of four degree and forty five minutes (4°45') north latitude, thence along the parallel of four degrees and forty five minutes (4°45') north latitude to its intersection with the meridian of longitude one hundred and nineteen degrees and thirty five minutes (119°35') east of Greenwich, thence along the meridian of longitude one hundred and nineteen degrees and thirty five minutes (119°35') east of Greenwich to the parallel of latitude seven degrees and forty minutes (7°40') north, thence along the parallel of latitude seven degrees

and forty minutes (7°40') north to its intersection with the one hundred and sixteenth (116th) degree meridian of longitude east of Greenwich, thence by a direct line to the intersection of the tenth (10th) degree parallel of north latitude with the one hundred and eighteenth (118th) degree meridian of longitude east of Greenwich, and thence along the one hundred and eighteenth (118th) degree meridian of longitude east of Greenwich to the point of beginning.

The United States will pay to Spain the sum of twenty million dollars (\$20,000,000) within three months after the exchange of the ratifications of the present treaty.

ARTICLE IV

The United States will, for the term of ten years from the date of the exchange of the ratifications of the present treaty, admit Spanish ships and merchandise to the ports of the Philippine Islands on the same terms as ships and merchandise of the United States.

ARTICLE V

The United States will, upon the signature of the present treaty, send back to Spain, at its own cost, the Spanish soldiers taken as prisoners of war on the capture of Manila by the American forces. The arms of the soldiers in question shall be restored to them.

Spain will, upon the exchange of the ratifications of the present treaty, proceed to evacuate the Philippines, as well as the island of Guam, on terms similar to those agreed upon by the Commissioners appointed to arrange for the evacuation of Porto Rico and other islands in the West Indies, under the Protocol of August 12, 1898, which is to continue in force till its provisions are completely executed.

The time within which the evacuation of the Philippine Islands and Guam shall be completed shall be fixed by the two Governments. Stands of colors, uncaptured war vessels, small arms, guns of all calibres, with their carriages and accessories, powder, ammunition, live stock, and materials and supplies of all kinds, belonging to the land and naval forces of Spain in the Philippines and Guam, remain the property of Spain. Pieces of heavy ordnance, exclusive of field artillery, in the fortifications and coast defenses, shall remain in their emplacements for the term of six months, to be reckoned from the exchange of ratifications of the treaty; and the United States may, in the mean time, purchase such materials from Spain, if a satisfactory agreement between the two Governments on the subject shall be reached.

ARTICLE VI

Spain will, upon the signature of the present treaty, release all prisoners of war, and all persons detained or imprisoned for political offenses, in connection with the insurrections in Cuba and the Philippines and the war with the United States.

Reciprocally, the United States will release all persons made prisoners of war by the American forces, and will undertake to obtain the release of all Spanish prisoners in the hands of the insurgents in Cuba and the Philippines.

The Government of the United States will at its own cost return to Spain and the Government of Spain will at its own cost return to the United States, Cuba, Porto Rico, and the Philippines,

according to the situation of their respective homes, prisoners released or caused to be released by them, respectively, under this article.

ARTICLE VII

The United States and Spain mutually relinquish all claims for indemnity, national and individual, of every kind, of either Government, or of its citizens or subjects, against the other Government that may have arisen since the beginning of the late insurrection in Cuba and prior to the exchange of ratifications of the present treaty, including all claims for indemnity for the cost of the war.

The United States will adjudicate and settle the claims of its citizens against Spain relinquished in this article.

ARTICLE VIII

In conformity with the provisions of Articles I, II, and III of this treaty, Spain relinquishes in Cuba, and cedes in Porto Rico and other islands in the West Indies, in the island of Guam, and in the Philippine Archipelago, all the buildings, wharves, barracks, forts, structures, public highways and other immovable property which, in conformity with law, belong to the public domain, and as such belong to the Crown of Spain.

And it is hereby declared that the relinquishment or cession, as the case may be, to which the preceding paragraph refers, cannot in any respect impair the property or rights which by law belong to the peaceful possession of property of all kinds, of provinces, municipalities, public or private establishments, ecclesiastical or civic bodies, or any other associations having legal capacity to acquire and possess property in the aforesaid territories renounced or ceded, or of private individuals, of whatsoever nationality such individuals may be.

The aforesaid relinquishment or cession, as the case may be, includes all documents exclusively referring to the sovereignty relinquished or ceded that may exist in the archives of the Peninsula. Where any document in such archives only in part relates to said sovereignty, a copy of such part will be furnished whenever it shall be requested. Like rules shall be reciprocally observed in favor of Spain in respect of documents in the archives of the islands above referred to.

In the aforesaid relinquishment or cession, as the case may be, are also included such rights as the Crown of Spain and its authorities possess in respect of the official archives and records, executive as well as judicial, in the island above referred to, which relate to said islands or the rights and property of their inhabitants. Such archives and records shall be carefully preserved, and private persons shall without distinction have the right to require, in accordance with law, authenticated copies of the contracts, wills and other instruments forming part of notarial protocols or files, or which may be contained in the executive or judicial archives, be the latter in Spain or in the islands aforesaid.

ARTICLE IX

Spanish subjects, natives of the Peninsula, residing in the territory over which Spain by the present treaty relinquishes or cedes her sovereignty, may remain in such territory or may remove therefrom, retaining in either event all their rights of property, including the right to sell or dispose of such property or of its proceeds; and they shall also have the right to carry on their industry, commerce and professions, being subject in respect thereof to such laws as are applicable to other foreigners. In case they remain in the territory they may preserve their allegiance to the Crown of Spain by making, before a court of record, within a year from the date of the exchange of ratifications of this treaty, a declaration of their decision to preserve such allegiance; in default of which declaration they shall be held to have renounced it and to have adopted the nationality of the territory in which they may reside.

The civil rights and political status of the native inhabitants of the territories hereby ceded to the United States shall be determined by the Congress.

ARTICLE X

The inhabitants of the territories over which Spain relinquishes or cedes her sovereignty shall be secured in the free exercise of their religion.

ARTICLE XI

The Spaniards residing in the territories over which Spain by this treaty cedes or relinquishes her sovereignty shall be subject in matters civil as well as criminal to the jurisdiction of the courts of the country wherein they reside, pursuant to the ordinary laws governing the same; and they shall have the right to appear before such courts, and to pursue the same course as citizens of the country to which the courts belong.

ARTICLE XII

Judicial proceedings pending at the time of the exchange of ratifications of this treaty in the territories over which Spain relinquishes or cedes her sovereignty shall be determined according to the following rules:

1. Judgments rendered either in civil suits between private individuals, or in criminal matters, before the date mentioned, and with respect to which there is no recourse or rights of review under the Spanish law, shall be deemed to be final, and shall be executed in due form by competent authority in the territory within which such judgments should be carried out.
2. Civil suits between private individuals which may on the date mentioned be undetermined shall be prosecuted to judgment before the court in which they may then be pending or in the court that may be substituted therefor.
3. Criminal actions pending on the date mentioned before the Supreme Court of Spain against citizens of the territory which by this treaty ceases to be Spanish shall continue under its jurisdiction until final judgment; but, such judgment having been rendered, the execution thereof shall be committed to the competent authority of the place in which the case arose.

ARTICLE XIII

The rights of property secured by copyrights and patents acquired by Spaniards in the Island of Cuba, and in Porto Rico, the Philippines and other ceded territories, at the time of the exchange of the ratifications of this treaty, shall continue to be respected. Spanish scientific, literary and artistic works, not subversive of public order in the territories in question, shall continue to be admitted free of duty into such territories, for the period often years, to be reckoned from the date of the exchange of the ratifications of this treaty.

ARTICLE XIV

Spain shall have the power to establish consular officers in the ports places of the territories, the sovereignty over which has been either relinquished or ceded by the present treaty.

ARTICLE XV

The Government of each country will, for the term of ten years, accord to the merchant vessels of the other country the same treatment in respect of all port charges, including entrance and clearance dues, light dues, and tonnage duties, as its accords to its own merchant vessels, not engaged in the coastwise trade.

This article may at any time be terminated on six months' notice given by either Government to the other.

ARTICLE XVI

It is understood that any obligations assumed in this treaty by the United States with respect to Cuba are limited to the time of its occupancy thereof; but it will upon the termination of such occupancy, advise any Government established in the island to assume the same obligations.

ARTICLE XVII

The present treaty shall be ratified by the President of the United States, by and with the advice and consent of the Senate thereof, and by Her Majesty the Queen Regent of Spain; and the ratifications shall be exchanged at Washington within six months from the date hereof, or earlier if possible.

In faith whereof, we, the respective Plenipotentiaries, have signed this treaty and have hereunto affixed our seals.

Done in duplicate at Paris, the tenth day of December, in the year of Our Lord one thousand eight hundred and ninety-eight.

WILLIAM R. DAY

CUSHMAN K. DAVIS

WM P. FRYE

GEO. GRAY

WHITELAW REID.

EUGENIO MONTERO RIOS
B. DEABARDUZA
J. DE GARNICA
W R DE VILLA URRUTIA
RAFAEL CERERO

And whereas, the said Convention has been duly ratified on both parts, and the ratifications of the two Governments were exchanged in the City of Washington, on the eleventh day of April, one thousand eight hundred and ninety-nine;

Now, therefore, be it known that I, William McKinley, President of the United States of America, have caused the said Convention to be made public, to the end that the same and every article and clause thereof may be observed and fulfilled with good faith by the United States and the citizens thereof.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the City of Washington, this eleventh day of April, in the year of Our Lord one thousand eight hundred and ninety-nine, and of the Independence of the United States the one hundred and twenty-third.

Signed: William McKinley

President William McKinley's Prayer

ANNOTATION

The section is an excerpt written by Homer C. Stuntz who was the pioneering missionary of the Board of Missions of the Methodist Church. His close friendship with Governor Howard Taft allowed him to write about the Philippines where he stayed for two years. This piece of information stemmed from the fact that President McKinley was a devout Methodist Christian and he shared his thoughts with a group of American Methodist dignitaries who visited him at the White House on November 21, 1899. The significance of this excerpt is that it gives an insider's view of how President McKinley arrived at his decision to issue his famous "Benevolent Assimilation" Policy. Citing that it was God's will that the US should annex the Philippine Islands after praying hard supported the idea that occupying the Philippine islands had a blessing from God and should be seen from the vantage point of the Christian zeal of missionary work by way of spreading the good news to the natives of the archipelago. This "divine revelation" would eventually shape the annexation of the Philippine islands to implement America's imperialist aspirations.

Meantime the question of what to do with the Philippines was the one which perplexed our authorities in Washington. President McKinley faced it, and sought advice from all parties. Perhaps the fullest unofficial statement he ever made of the way his own conclusion to hold the Islands was reached is contained in his address to a committee of clergymen, as reported in the *Christian Advocate* by General James. F. Rusling. General Rusling was a member of a committee from a religious gathering in Washington to present resolutions of thanks to President McKinley for courtesies shown its members, and, with Bishop Thomas Bowman, Bishop John F. Hurst, and Drs. Upham and Buckley, met with the President by appointment in his private office in the White House for that purpose, November 21, 1899. After a pleasant interview the members of the committee rose to take their leave. The President detained them to give the following statement:

"Before you go I would like to say just a word about the Philippine business. I have been criticized a good deal about the Philippines, but don't deserve it. The truth is, I didn't want the Philippines, and when they came to us, as a gift from the gods, I did not know what to do with them. When the Spanish War broke out, Dewey was at Hong-Kong, and I ordered him to go to Manila, and he had to; because, if defeated, he had no place to refit on that side of the globe, and if the Dons were victorious they would likely cross the Pacific and ravage our Oregon and California coasts. And so he had to destroy the Spanish fleet, and did it! But that was as far as I thought then.

"When I next realized that the Philippines had dropped into our lap, I confess I did not know what to do with them. I sought counsel from all sides – Democrats as well as Republicans – but got little help. I thought first we would take only Manila; then Luzon; then other islands, perhaps, also. I walked the floor of the White house night after night until midnight; and I am not ashamed to tell you, gentlemen, that I went down on my knees and prayed Almighty God for light and guidance more than one night. And one night late it came to me this way – I don't know

hot it was, but it came: (1) That we could not give them back to Spain—that would be cowardly and dishonorable; (2) That we could not turn them over to France or Germany—our commercial rivals in the Orient—that would be bad business and discreditable; (3) That we could not leave them to themselves—they were unfit for self-government—and they would soon have anarchy and misrule over there worse than Spain’s was; and (4) That there was nothing left for us to do but to take them all, and to educate the Filipinos, and uplift and civilize and Christianize them, and, by God’s grace, do the very best we could by them, as our fellow-men for whom Christ also died. And then I went to bed, and went to sleep, and slept soundly, and the next morning I sent for the chief engineer of the War Department (ou map-maker), and told hi, to put the Philippines on the map of the United States (pointing to a large map on the wall of his office); and there they are, and there will stay while I am President!”

The American occupation of the Philippines was undertaken with motives as humane and disinterested as those which drove us to war with Spain at first. The fact is, that the hour of destiny had struck. The forbearance of a just God was exhausted. Spain must dispossessed of territories which she had ruled with force and cruelty. A new order must begin.

Benevolent Assimilation Policy Declaration
EXECUTIVE MANSION, WASHINGTON, December 21, 1898.

ANNOTATION

On Dec. 21, 1898, President McKinley issued the BENEVOLENT ASSIMILATION PROCLAMATION, announced in the Philippines on Jan. 4, 1899, which stated the U.S.' "humane" mission in acquiring the Philippines. He emphasized that the U.S. have "come, not as invaders or conquerors, but as friends, to protect the natives in their homes, in their employment, and their personal and religious rights." He proclaimed after the signing of the Treaty of Paris, asserting that the "military government maintained in Manila is to be extended to the whole Philippine islands and that the United States government assumes full control and sovereignty of the Spanish government over the Philippines. After a lengthy debate, the U.S congress ratified the treaty on February 6, 1899.

Moreover, the U.S. wanted to "win the confidence, respect, and affection of the inhabitants of the Philippines by assuring them in every possible way that full measure of individual rights and liberties which is the heritage of free peoples, and by proving to them that the mission of the United States is one of benevolent assimilation substituting the mild sway of justice and right for arbitrary rule." From the proclamation itself, President McKinley had denied the very concept of the declaration of war against Spain by deciding to annex the Philippines.

The destruction of the Spanish fleet in the harbor of Manila by the United States naval squadron commanded by Rear-Admiral Dewey, followed by the reduction of the city and the surrender of the Spanish forces, practically effected the conquest of the Philippine Islands and the suspension of the Spanish sovereignty therein. With the signature of the treaty of peace between the United States and Spain by their respective plenipotentiaries at Paris on the 10th instant, and as a result of the victories of American arms, *the future control, disposition, and government of the Philippine Islands are ceded to the United States*. In the fulfillment of the *rights of sovereignty* thus acquired and the responsible obligations of government thus assumed, the actual occupation and administration of the entire group of the Philippine Islands becomes immediately necessary, and the *military government* heretofore maintained by the united states in the city, harbor, and bay of Manila *is to be extended* with all possible dispatch *to the whole of the ceded territory*.

In performing this duty the military commander of the United States is enjoined to make known to the inhabitants of the Philippine Islands that in *succeeding to the sovereignty of Spain*, in severing the former political relations, and in establishing a new political power, the authority of the United States is to be exerted for the securing of the persons and property of the people of the islands and for the confirmation of all their private rights and relations. It will be the duty of the commander of the forces of occupation to announce and proclaim in the most public manner that *we come*, not as invaders or

conquerors, but as friends, *to protect* the natives in their homes, in their employments, and in their personal and religious rights. All persons who, either by active aid or by honest submission, co-operate with the Government of the United States to give effect to these beneficent purposes will receive the reward of its support and *protection*. All others will be brought within the lawful rule we have assumed, with firmness if need be, but without severity, so far as possible. Within the absolute domain of *military authority*, which necessarily is and *must remain supreme* in the ceded territory until the legislation of the United States shall otherwise provide, the municipal laws of the territory in respect to private rights and property and the repression of crime are to be considered as continuing in force, and to be administered by the ordinary tribunals, so far as practicable. The operations of civil and municipal government are to be performed by such officers as may accept *the supremacy of the United States* by taking the oath of allegiance, or by officers chosen, as far as practicable, from the inhabitants of the islands. While the control of all the public property and the revenues of the state passes with the cession, and while the use and management of all public means of transportation are necessarily reserved to the authority of the United States, private property, whether belonging to individuals or corporations, is to be respected except for cause duly established. The taxes and duties heretofore payable by the inhabitants to the late government become payable to the authorities of the United States unless it be seen fit to substitute for them other reasonable rates or modes of contribution to the expenses of government, whether general or local. If private property be taken for military use, it shall be paid for when possible in cash, at a fair valuation, and when payment in cash is not practicable, receipts are to be given. All ports and places in the Philippine Islands in the actual possession of the land and naval forces of the United States will be opened to the commerce of all friendly nations. All goods and wares not prohibited for military reasons by due announcement of the military authority will be admitted upon payment of such duties and other charges as shall be in force at the time of their importation. Finally, it should be the earnest wish and paramount aim of the military administration to win the confidence, respect, and affection of the inhabitants of the Philippines by assuring them in every possible way that full measure of individual rights and liberties which is the heritage of free peoples, and by proving to them that the mission of the United States is one of

BENEVOLENT ASSIMILATION

substituting the mild sway of justice and right for arbitrary rule. In the fulfillment of this high mission, supporting the temperate administration of affairs for the greatest good of the governed, there must be sedulously maintained the strong arm of authority, to repress disturbance and to overcome all obstacles to the bestowal of the blessings of good and stable government upon the people of the Philippine Islands under the free flag of the United States.

WILLIAM McKINLEY.

Excerpt from Palma, R., Kalaw, T. M. (Teodoro Manguiat). (1923). Our campaign for independence from Taft to Harrison (1901-1921). Manila: Bureau of printing. pp 15 to 17

ANNOTATION

Rafael Palma was a member of the Philippine Commission and was later elected Senator and ultimately appointed as the fourth President of the University of the Philippines. Teodoro M. Kalaw was a nationalist scholar, legislator, journalist, educator, and historian. The two authors were very active as political leaders and officials of the government during the American period. This excerpt provides an authoritative account of the evolution of the two dominant parties during the American period. It provides clear insights and details on why the respective political parties were organized including the discussion of their political platforms.

It was the inauguration of the First Philippine Assembly in 1907 that paved the way for the country's independence from American rule as it provided the Filipino legislators to have hands-on experience in the local political affairs. This event was very significant in the history of Philippine politics since this event also witnessed the first national election in our country through popular votes. The Filipinos' aspirations for greater political participation and their thirst for self-rule were realized in the establishment of the Philippine legislature. This glorious victory of the Filipinos was accompanied by enormous responsibilities because they have to prove to the U.S Congress, the international community, and to the Filipino nation that the Filipinos could govern themselves properly and dutifully.

THE FEDERAL PARTY IS ORGANIZED

Since the beginning of the Filipino American War there had been a small group of Filipinos who were opposed to it. These remained in Manila since the commencement of hostilities and did not take part in the risk of the campaign, some of them believing in good faith that it was a mistake and that it was foolish to fight against forces a hundred times superior. From among these Filipinos the Commission recruited its followers and advisers. Later on, some of the politicians who had been followers of Aguinaldo, and had taken refuge in the amnesty proclamation, joined this small nucleus, perhaps because they were convinced that to continue resistance would merely weaken the country materially and economically, and that it was more prudent because of pressure of circumstances, to temporarily renounce the political ideal that they had espoused. With the Filipino troop dispersed and the consequent surrender of many of their generals; with the first acts of the Commission that bore signs of democracy and the desire to count with public opinion in the making of the laws; with the reelection of McKinley that assured the continuance of his policy for another four years, and, lastly, with the proclamation of General McArthur threatening the Filipinos in arms with a series of cruel and severe penalties the group of conservative Filipino saw that the time had come to act, and they organized a political party under the name of Federal Party. The principal object of the

party was to hasten general peace in all the provinces and then to establish a territorial government which in time would make possible the admission of the Islands as a State of the North American Union. It was with unfeigned satisfaction that the Commission welcomed the organization of this party. It was not only a clear proof that their reassuring reports to Washington were founded on fact; it made it easier for them besides to carry out their plan of retaining the Islands indefinitely. The possibility of making the Islands a state of the American union was a handy pretext with which to drive away the idea of independence so deeply imbedded in the minds of the Filipinos. It was for this reason that the Commission lent most cordial and decided support to the Federal Party and its dignitaries, and it placed at their disposal all the facilities and means available under a state of actual war with which to carry out their propaganda ends. In the Commission's phraseology, the Federal Party spread thru out the Islands with lightning like rapidity; but it spread not on account of the principles it stood for, but rather because of the spoils and benefits that it might be able to divide among those enlisting in its ranks. The hardships of the military rule under which many families were groaning, coupled with the enticing offers of honors and recompense from the government coffers, was the magnificent combination that had the effect of greatly weakening the resistance of the most valiant exponents of independence. The Federal Party was victorious all along the lines and rightly could it boast at the time of its easy conquests. It had with it the cream and the flower of plutocracy and the country's aristocracy of talent, at the same time that it enjoyed unlimited power, confidence, and influence in the councils of the new government.

Without losing time, the Commission organized the municipal governments, and soon afterwards the provincial governments. This furnished the occasion for a triumphal trip of the Commission from one province to another, familiarizing themselves with men and things, mixing socially with the Filipinos, informing them of the Commission's benevolent mission and promising them, like kindly guardians, a greater degree of popular government if they would conduct themselves as became good wards. 6

The lesson, however, was not mastered so easily by such provinces as Cavite, Batangas, Cebu, and Samar where the civil governments had to be turned over to the military; but on the whole it can be said that the rest of the provinces behaved in the manner expected of them. Hence it was that the Commission, complying with its mission of peace, organized the central civil government on July 4, 1901, in spite of the intrigues of the military who would not relinquish hold of the government so easily in favor of others.

About the time, when Taft was absent in Rome, the Nationalists, who had until then kept silent but had been observing with grief the course that events had taken, began to feel the first qualms of conscience and they decided to take soundings to see whether the stream could be forded. A number of “consistents,” as they styled themselves, met, deliberated, and drew up, without delay, a program containing the following bases:

ESSENTIAL BASE

First'— The securing of the independence of the Islands thru lawful means.

INCIDENTAL BASES

Second. Modification of the present administration of the Philippines so as to give the Filipinos a greater degree of self government, as an announcement of the capacity of the Filipino people.

Third. —Modification of article seven of the Philippine Bill as follows:

(a) Immediate establishment of two legislative chamber upon the completion of the Census.

(b) Both these legislative chambers to be elected by popular suffrage, to safeguard the interests of the Filipino people, and to be patterned after the two Houses of Congress in America.

(c) The bills passed by the Philippine Legislature to become laws subject to the same rules set forth in the American Constitution.

Fourth. —Admission of Philippine products into the United States customs free.

Fifth . Protective legislation for the Philippine industries. A committee of three was appointed to lay this program before Governor Wright, who was acting in the absence of Mr. Taft. It is said that Governor Wright, upon learning the purpose of the committee, knitted his brow in displeasure and flatly refused to give his assent to the program. Although aggrieved by Governor Wright's reception, the Nacionalistas were not discouraged, and when Mr. Taft arrived they named another committee to see him. Mr. Taft was more diplomatic as to form than Mr. Wright, but was just as unyielding as to substance.

In his opinion, the propaganda of the Nacionalista party would stir up the fires of the insurrection anew and would kill the party itself. It would be impossible to prevent the authorities from suspecting the Nationalists from within and confusing them with the brigands out in the field. Along similar lines, Mr. Taft addressed the committee. He took care to suggest, however, that if the word “independence” were eliminated from the program, he would have no objection to recognizing the new

party. Debates and doubts ensued among the organizers of the party, but in the end the opinion prevailed that the grapes were still green and must be allowed to ripen; they, therefore, retreated to their original position of watchful waiting. It was

impossible, however, for the Federalists' error to continue blindfolding the country for any length of time. The Saint Louis Exposition of 1904 which induced many Filipinos to visit the United States, gave the Federal Party a lesson which it would not even admit when Mabini made them see the impossibility of their platform.

There was not a single American who seriously favored the annexation of the Philippines. To them, such annexation was precluded by the distance of the Islands and by the customs of the Filipinos that were totally different. Many of the prominent "Federalists" who had gone to the United States in the honest belief that their platform had some merit to it, came back confused and disheartened. The panacea they had administered on the country was a fatal one, and could not cure it, so that the party found itself in a very embarrassing position which not even the changes, subsequently adopted, were able to remedy.

The Nacionalistas took advantage of the opportunity and came out in the open. The state of war that had silenced them there tofore and prevented the carrying out of any propaganda for the party, had ceased to exist. There was nothing in the organic law prohibiting their working in a peaceful manner for the independence of the country. The Census had been completed and two years later the elections for the first Philippine Assembly was to be held. Herein we have to do justice to the American people. The liberal spirit of their Constitution which allows no barriers to free thought and its free expression, had made it possible for the Filipinos to campaign peacefully for their independence and to provide the ways and means necessary to obtain it. No other people has permitted a similar liberty to the inhabitants of a territory under its sway. Thus it was that the Nacionalistas, in organizing their party, never lost sight of, nor have they ever failed to recognize, this generosity on the part of the American people and their representatives in the Islands. Thus it was also that the leaders of the Nacionalistas never have shown an attitude of arrogance or of challenge even in the most trying situations, but instead they have placed themselves in the position of one merely complying with a duty dictated by the voice of the people. They considered themselves as trustees of the ideals of the Revolution, who were in duty bound to continue the works of those who had fallen.

In all their campaigns they limited themselves to showing to the American people and their representatives here that the cause of independence had not ceased to have followers in the country, and that, in spite of the personal liberties grant the Filipinos and the participation given them in the different branches of the government, they still cherished the ambition to have their own nationality and their own government under their own laws. In no manner were they impeded by the Government in their organization, but while there were no impediments from that end, there were many when the time arrived for the heads of the organization to come to an understanding. Because of this lack of understanding the Nacionalistas

became divided into various groups, the dividing line between each of which they themselves were unable to delineate. They lost much time discussing the clauses and planks of their respective platforms, until, on the eve of the election, the apprehension of a common disaster made them reunite, but only temporarily, because after their victory at the polls they fell to disputing again among themselves.

**Excerpt from Harrison, Francis Burton. *The Corner-Stone of Philippine Independence*.
New York: The Century Co., 1922. pp 60 – 74**

ANNOTATION

Francis Burton Harrison (1873-1957) was a lawyer educated at Yale and the New York Law School. As a Democrat representing the State of New York, he was a U.S. congressman from 1903 to 1905 and from 1907 to 1912, and in 1916 President Woodrow Wilson appointed him Governor-General of the Philippines. As a fervent anti-imperialist and opponent of “Dollar Diplomacy,” Harrison speeded up the filipinization of civil service posts, introduced reforms toward self-government, and espoused the Democrat program to give early independence to the Philippines. The Democrats lost in the elections of 1920, but Harrison returned to Manila in 1935 to serve as a presidential adviser to President Manuel L. Quezon under the Philippine Commonwealth. He was also an adviser to the Philippine government-in-exile during World War II, as well as to Presidents Manuel Roxas, Elpidio Quirino, and Ramon Magsaysay. At his request, Harrison was buried in the Philippines.

The excerpt depicts the personal view of Harrison on the Filipino leaders and politicians who were emerging as the new leaders of the government. His descriptions of his relationships with the leaders and their ways offer a firsthand version of the evolution of the political control and influence of members of the Philippine Assembly. This selection also shows his thoughts on the role and challenges he faced as the Governor-General of the Philippines.

CHAPTER V

Filipinos in Control of Legislature

It is not my intention to write here a history of the Philippine Government during the past eight years. As a participant in the work of that administration I could not, in all probability, write impartially of it. The records are all there, and it is too soon to pronounce final judgment. Those of us who have been connected with the administration have many times given public expression to our purposes and public record to our explanations. Most of it is already embalmed in the mortuary of government reports on file in Washington and Manila. Some Filipino historian in the years to come will probably, from the angle of vision afforded those who come after us, go through the musty records of the past, and give to this period a few chapters in a history of the Philippines. My hope is that in this volume I may contribute something of interest to the world-wide discussion concerning the capacity of the tropical races for self-government, as observed by one who has been engaged in giving to the Filipinos the fullest possible opportunity to demonstrate such capacity. If for this purpose government records and statistics are quoted, it will be in the endeavor to show to what an extent the Philippines have developed politically, economically, and otherwise materially, under their own government. (60)

It is impossible, however, to avoid frequent reference to the governor-general and his relation to the general situation ; his position is by tradition the very nerve-center of Philippine administration, and he is given by law very full powers of supervision and control. It was one of my purposes to assign gradually to the proper functionaries the responsibilities which should be theirs. The Governor-General of the Philippines receives a salary of \$18,000 a year from the Insular Treasury, and the residence known as Malacañang Palace in Manila is set aside for his use. The salary had been \$21,000, but was reduced, at my insistence and against the wishes of members of the Legislature, during my first weeks of office, when for reasons of vitally necessary economy other salaries were being cut. The salaries of the Governor of Hong-Kong and the Governor-General of Java are about three times as high ; of the Governor General of British India about four or five times as much. It costs the Governor-General of the Philippines from twice to four times his salary to live in Malacañang, according to his disposition in the matters of entertaining and general style of living. No motor-car is furnished him, and no servants, but he has free light and water and a cottage allowed him in the mountains in Baguio, known as the Mansion House. Free music is provided for entertainments in Manila, furnished by the Constabulary Band. Before leaving I was instrumental in arranging that the appropriation bill should provide for the "entertainment of distinguished guests" out of the \$100,000 appropriated in the General Purpose funds, when "approved by the Council of State." This should lighten the financial (61)

burden of my successor. It was made use of once in my last few months of office to the amount of about \$3000, to pay for the extraordinary expenditures necessary for entertainment at Malacañang of the visitors who were members of the Congressional party. Malacañang Palace is one of the most comfortable and delightful homes in the tropics. The Spaniards were the best of all the European races as builders in the hot countries, perhaps because they learned how to build in their own. The English make themselves miserable in the tropics by reproducing in every respect possible the houses and methods of life of their own cold climate. Malacañang was originally purchased by the Spanish Government about a century ago as a casita or country house, and has been added to from time to time until it has now a huge floor space of old hand-hewn hardwood, and is admirably fitted for large entertainments. The balcony projects over the swiftly flowing Pasig River, and there is generally a pleasant breeze there, even during the hottest weather. The thermometer in my room generally stood at 83°, and seldom went below 76° or above 89°. The gardens along the river are noted for the fairy-land illumination displayed at evening entertainments. Malacañang has been greatly enlarged and modernized in the last few years, and a beautiful new executive office building in the garden has just been completed. In the disastrous earthquake of 1865 the big stone palace of the governor-general, on what is now Plaza McKinley, was totally destroyed, and the governor-general moved temporarily into Malacañang; like so much else that the Spanish intended as temporary, it has become his permanent residence. When I settled (62) in Malacañang I was the ninety-fifth governor-general, and served in that position for seven and a half years, or longer than any one of the forty-four who had directly preceded me, dating back to the eighteenth century. The governor-general has an office in Malacañang, but when he was also President of the Philippine Commission, which

sat daily during the Legislative sessions, it was customary for him to go to the Ayuntamiento, or City Hall, every day for his office work.

It was frequently charged that in my first months of office I would not consult with "the Americans"; so far as I am aware, I saw all Americans who wished to advise with me,—indeed, gave hours to that service, day after day, year after year. The real difficulty was that I did not always take the advice, not of "the Americans," but of certain Americans who had composed what had been popularly known as the "kitchen cabinet," or "polo cabinet" of recent years.

Few of them held official positions, and many of them seemed to me to be inspired by private financial interests rather than the public interest. Anyone who has ever held public executive office will know how very great a part of his time is occupied in seeing people and receiving advice. This is particularly so in the Philippines, where for ages a paternal government had been conducted, with the governor-general, whether by law or custom, the head and center of it all. Week after week my time was occupied with receiving complaints, advice, or requests, often from the same people again and again. Finally I came to feel that my office was not unlike that of a medical man : persons came to me only when in trouble, and for consultation and relief. (63)

At the very beginning I made of record the fact that I had come to govern the islands in consultation also with the Filipinos. I was thus brought into immediate and daily contact with Mr. Sergio Osmena, the Speaker of the House of Representatives, president of the Nacionalista party and the leading representative of the Filipino people. This remarkable man had already been Speaker for five years, and still holds that office. I found him extremely well informed, not only about Philippine affairs, but about American history and Constitutional law. Wise, astute, and cautious, of an impressive personality, he was also possessed of most remarkable courteous good manners, which never failed him. For the past thirteen years he and Mr. Quezon have been the dominant personalities in Philippine politics. I have never heard either of them speak a word of criticism or ill-will against the United States or the American people, and only very rarely against an individual American. They have always had a faith in our country and an appreciation of what our country has done for their people far above the petty level of political and racial feelings in Manila.

Our first duty was to select for recommendation to the President the names of the new Filipino majority in the commission which was promised by his message. Mr. Osmena furnished a list of a dozen names, and we proposed to submit them for approval to the Philippine Assembly, so that all the elected representatives of the people might have a share in the selection, but this plan was vetoed by the Secretary of War. I then consulted Chief Justice Arellano, Resident Commissioners Quezon and Earnshaw, and Colonel Harbord, (65)

Chief of Constabulary. The five names agreed upon were cabled to the Secretary of War, and the commissioners were shortly nominated by the President and confirmed by the Senate, as follows: Victorino Mapa of Iloilo as Secretary of Finance and Justice; Rafael Palma of Manila, for several years already a member of the commission, for reappointment; Vicente Ilustre of

Batangas ; Jaime de Veyra of Leyte and Vicente Singson-Encarnacion of Ilocos Sur. Palma and De Veyra were members of the Nacionalista party, Mapa sympathetically inclined to that party, Ilustre an independent, and Singson the leader of the Progresista party in the House of Representatives. For nearly three years, until the change of government under the Jones Act, we worked. Together through seasons of political excitement and turmoil with perfect harmony and mutual good-will. It may serve to illustrate the types of older Filipino leaders to describe these commissioners here.

Secretary Mapa, who sat for twelve years upon the Philippine Supreme Court bench, is short of stature and dignified in demeanor. He served in Spanish days as Alcalde (or Mayor) of the City of Iloilo. His courtesy and modesty are so great that none but his intimate friends know his rare sense of humor and fund of anecdotes and proverbs. Some of his best stories are of playing tresillo (cards) with Governor-General Weyler, who was a short man like himself, with a terrific military reputation and menacing gestures; Mr. Mapa incidentally points out that General Weyler in all his long life had never once been under fire himself. As a member of the commission, Mr. Mapa's services were invaluable; nobody in the islands has a better (66)

legal mind, and he was constantly appealed to by his colleagues for his opinion on all legal points, never offering his advice in general discussions until it was asked. He was generous and kindly always, but in a parliamentary fight, once he had made up his mind, he was absolutely fearless, a veritable little Lion of Justice. His face is like an engraving of a French statesman of the seventeenth century, and his sense of honor and fair play are above all party or political considerations. He was recently made Chief Justice of the Supreme Court, to succeed the late Chief Justice Cavetona Arellano, but had to resign his position before a year of incumbency, on account of ill-health.

Rafael Palma is generally considered the third man in Filipino politics. His somewhat severe and melancholy face frequently lights up with an unexpected and sunny smile, as his sense of humor is pronounced. He has a good legal mind, rare literary ability, and a talent for public speaking ; and he speaks in the choicest Spanish. He is modest and industrious, and a loyal party man, upon whom a large part of the burden of party management was placed by Speaker Osmena. His service in the House of Representatives, the commission, the Philippine Senate, and on the Board of Regents of the University of the Philippines has been marked by absolute integrity and by a devotion to the cause of public instruction. As Secretary of the Interior he handled successfully many of the most delicate problems of the Government. Just and fair, he is popular with Americans and Filipinos alike. Being a very poor man, he has recently retired from the cabinet to enter business, as he has, in the Filipino fashion, a large and growing family. (67)

Jaime de Veyra was governor of the great province of Leyte during the troublesome days of the uprising of the pulajans, or outlaws, about fifteen years ago. His literary ability is marked, and illuminates his reports and papers, as he served an apprenticeship as a newspaper editor. He has held office in the House of Representatives and the commission and as Secretary of Commerce and Police, and then as Executive Secretary of the Government. His charming wife is a great

asset to him, with her facility for making and keeping friends among the American Congressional ladies, since Don Jaime is now one of the two Representatives in Congress from the Philippines. He is of a thick-set figure, somewhat darker than his colleagues, and of a very serious turn of mind, rarely smiling or talking except when he has something to say, when he develops a rather unexpected eloquence. He is extremely tender-hearted and inclined to sentiment. Vicente Illustre has dark and handsome features, and is possessed of much dignity and grace of manner. He served as a member of the Revolutionary Junta in Hong-Kong during the insurrection, and since then has practised law and watched over his sugar plantations in Batangas. He came from private life to the commission, where he did arduous and valuable work in drafting the laws for the reformation of the Justice of the Peace service, and also the new code for the government of the Department of Mindanao and Sulu, in 1914. He, like Mr. Mapa and Mr. Singson, has considerable wealth, and lives in a luxurious home surrounded with all comforts and with works of art. Mr. Illustre was always something of an insurrecto in politics, and though he gained a seat for the short term in the Sen- (67)

ate, in 1916, he was ousted by his opponent in 1918 and has since practised law. He is rather more suspicious of the intentions of the United States than are his colleagues, and is aggressively in favor of the immediate independence of his country. His education was completed in Madrid in the later days of Spanish domination, and he has imbibed there some of the old-world cynicism as to the promises and agreements of nations. Vicente Singson is a tall, slow-moving figure of the mestizo type. He is an able public speaker, and has served in the House of Representatives, the commission, and the Senate. He is a Conservative and his interests are largely those of business and finance. Humor seldom disturbs his dignity, but his manners are affability and courtesy personified. His talents are those of the world of commerce, rather than of legislative halls, but he is ready and able to advance his views and defend his opinions on all occasions. His presence strengthened the business side of the commission.

Like Mr. Palma, he has been to the United States twice, and seems to like American customs and ideas. I find on reading over these descriptive sketches of my first Filipino colleagues that I have stressed the dignity of them all ; they are all of the older type and generation, and of them only Mr. Palma speaks English readily ; none have had an American public-school education. Dignity of demeanor is essentially an Oriental characteristic,—dignity with an impassive tinge. In the expression of most of the older Filipinos there is a trace of melancholy, as there is in all the Filipino music of older days,—the mark of centuries of service as a subject race. Men of the younger genera- (68)tion, already coming upon the stage in business and public affairs, look full of hope, ambition, and American hustle. Upon first acquaintance, Americans are not aware of the sense of fun of the Filipinos; their solemnity is an affair of manner rather than of mind. I remember several meetings of the all-Filipino Council of State in which the bursts of laughter must have disconcerted the officials on the other side of the swing doors. Loyal friends, good companions, dependable advisers—I regret leaving them all In public affairs I found them ever conscientious and patriotic, with a fine sense of the respect owed the United States Government, and a due

consciousness of obligation to their own people. Never was an anti-American measure introduced intentionally. They realized that the Filipinos were on trial, and that they themselves were the representatives of their fellow countrymen before the world. Hardly a possible problem of government but came before the commission or the Council of State during these years. I found them in debate, and in the care with which they cast their votes, as full of responsibility and of intelligent understanding as any legislators I have known anywhere.

Those departments of government which they had never possessed before, and which were therefore new to them, were studied with the utmost care and deliberation. In later chapters I shall discuss the development of Filipino governmental abilities. Within a few months the membership of the Philippine Commission was completed by President Wilson, and there arrived from the United States the new American members,—Vice-Governor Henderson S. Martin, a progressive Democrat from Kansas, genial and sunny-tempered, with a decided leaning toward all liberal and democratic ideas; Winfred T. Denison, Secretary of the Interior, sensitive and high-minded, one of the Progressive Republicans from New York, loyally devoted to the principle of Filipino self-government; and Clinton L. Riggs of Baltimore, Secretary of Commerce and Police, a Democrat of the most conservative type, whose bias in favor of the generally accepted standards of colonial government soon earned for him among the resident Americans the nickname of "the White Hope."

General Riggs was a most charming social companion, and a most difficult colleague in government. He was, from the very beginning, out of sympathy with the new policy in the Philippines, and, I think, came out with the idea of replacing me when my removal was accomplished by the campaign then under way. He was closely in the confidence of the Secretary of War, who also was greatly disturbed at the reports coming from the Philippines; and although Secretary Garrison subsequently became disgusted with the misinformation about the Philippines which was being disseminated through the United States, and in a spirit of generous indignation entered into a sharp controversy with Mr. Taft in the public press in defense of my administration, I am sure he would, himself, say that he never really sympathized with our radical plans in the Philippines; indeed, it will be remembered that his resignation as Secretary of War was based partly upon his dissatisfaction with the speedy preparations for Philippine independence. General Riggs stood firmly upon his interpretation of the law which gave the governor-general only "supervision" of the (70) other department secretaries; he told me that "supervision" gave only an advisory power, and no right of interference in his department, which included the Philippine Constabulary, of which by law the governor-general was commander-in-chief. The Jones Act of 1916 cleared up this controversy by giving the governor-general "supervision and control" over all departments of government. During the eighteen months of our controversy, General Riggs and I, after the fashion of Anglo-Saxons, managed to remain, personally and socially, good friends. He went home ill in the summer of 1915, and his resignation was accepted by the President in December of that year.

Poor Denison was the official who suffered most from the troublesome political storms of those early days; his was a spontaneous, frank, and sincere nature, and he was genuinely inspired with

a desire to bring self-government to the Filipinos. He was not of the stern stuff necessary to face public criticism and abuse. Within his first few months he made a speech at the City Club in Manila in which he advocated giving the Filipinos their rights, or, as he phrased it, "give them what they want." He at once became the target for a veritable bombardment of ridicule and abuse from the "organization," and his spirit was completely shattered. He left the Philippines a year later, in a most melancholy frame of mind, absolutely broken on the wheel of the "organization's" criticism.

Vice-Governor Martin, of a serene and well-balanced disposition, rode the waves successfully and rendered excellent service in the commission. His chief work was in the public schools, in founding the Rural Credit Association system, and in drafting and forcing (71) through the charter of the Philippine National Bank. He resigned in the autumn of 1916, and I think has since regretted that he did not remain to carry on the work he liked so well. He was a valuable and much valued pillar of support in our Philippine policy. He was succeeded in June, 1917, by Vice-Governor Charles E. Yeater of Missouri, at the present writing acting Governor-General of the Philippines.

To the Filipinos, the majority upon the commission meant that the dead-lock as to appropriations and other important measures would be broken instantaneously, and that in the selection of their higher officials, such as bureau chiefs, and judges of the First Instance, they were to have the controlling vote in the commission, to which, by existing law, such nominations were sent for confirmation. Long-standing grievances which they wished to remove were now in their hands for settlement. Above all, the new policy was a recognition of their political rights and race dignity, for which they showed immediate gratitude.

The morning after the announcement of the new step forward, "La Vanguardia," the leading Filipino paper, theretofore a very resolute opponent of American policies in the islands, expressed in Spanish the general sentiment editorially under the heading

"Dawn of the New Era" as follows:

Magical Effect of President's Grave and Dignified Message . . .
Complete Disappearance of All Hitherto Existing Prejudices and a Great Improvement in Political Atmosphere.

Much has already been said and written in regard to the necessity of a better understanding, of harmony and cooperation, but, hitherto, results have been always negative and all (72) efforts seemed fruitless. Matters went from bad to worse. Now, however, it has been sufficient for the chosen representative of President Wilson to make a simple and frank statement of policy, and the situation as a result is completely changed. These statements have been sufficient to revive in a most admirable and complete manner the faith of Filipinos in the justice of the American people, and all prejudices and misunderstandings that have grown up in the past have

been immediately wiped away. As a result, it can be said that since the decided views of the Democratic Administration have been announced never before in our mutual history have respect and consideration of American sovereignty been as firmly rooted in these islands as it is now.

The editor of the "Vanguardia," Mr. Alejandro Roces, the most influential and independent daily publisher in the islands, maintained the same attitude unswervingly during my whole administration. His unselfish patriotism and determined freedom from any official connections lent weight to his opinions.

Upon the day after the delivery of the first message to the Legislature—October 16, 1913—the Philippine Assembly gave official expression to similar views in a resolution, reciting the firm stand of the Filipino people for immediate independence from the day of the insurrection against Spain in 1896, through all trials and vicissitudes, and their patient confidence that ultimately the United States Government would redress "all errors and injustices." The resolution concluded as follows

We believe that, happily, the experiments of imperialism have come to an end, and that colonial exploitation has passed into history. The epoch of mistrust has been closed. ... A few days have sufficed to bring about a good understanding between Americans and Filipinos, which it had been impossible to establish during the thirteen years past. We are convinced that every onward step, while relieving the American Government of its responsibilities in the Islands, will, as in the past, fully demonstrate the present capacity of the Filipino people to establish a government of its own and guarantee in a permanent manner the safety under such government of the life, property and liberty of the residents of the Islands, national as well as foreign. We do not wish to say by this that there will not be difficulties and embarrassments.

Nor do we even expect that the campaign, open or concealed, of the enemies of the Filipino cause will cease soon, but we feel sure that through a conservative use of the powers entrusted to us, the Filipino people will, with God's favor and the help of America, emerge triumphantly from the test however difficult it may be. A few days later, when the Filipino majority was appointed to the commission, the new commissioners cabled their thanks to the President, accepting the offices in order to "aid the work of laying down a basis for a stable, free Filipino Government." A joint meeting of the Legislature on October 31, 1913, resolved "that the principle of immediate action has taken the place of the announcement of promises." These quotations have been given not only to show the response of the Filipino mind to the new policy, but for the light they cast upon past history in the islands. For a century at least the home government, first of Spain and then of the United States, had, in moments of liberal impulse, promised reforms and made political professions, and then turned to other matters and left the field to the forces of reaction and inaction.

The Jones Law of 1916

August 29, 1916

ANNOTATION

On August 29, 1916, the Jones Law, or the Act of Congress known as the Philippine Autonomy Act of 1916, was approved. It was the first formal and official declaration of the United States' commitment to grant independence to the Philippines. US Congressman William Atkinson Jones of Virginia authored the Jones Law. The law provides that the grant of independence would come only "as soon as a stable government can be established" which gave the United States Government the power to determine when this "stable government" has been achieved.

It aimed at providing the Filipino people broader domestic autonomy though it reserved certain privileges to the United States (Americans) to protect their sovereign rights and interests. Jones Law replaced the Philippine Organic Act of 1902 (Philippine Bill of July 1, 1902) that served as the de facto initial constitution of the Philippine Islands after it was ceded by Spain to the United States by the Treaty of Paris. Among the salient provisions of the Autonomy Act of 1916 was the creation of an all Filipino legislature which created the Philippine Senate to replace the Philippine Commission which had served as the upper chamber of the legislature. The law specified government functions to an executive to be appointed by the U.S President with the consent of the senate, with the title American Governor-General in the Philippines. The legislative power was lodged in an elective bicameral legislature called the senate and the House of Representatives.

[Public, No. 240]

AN ACT TO DECLARE THE PURPOSE OF THE PEOPLE OF THE UNITED STATES AS TO THE FUTURE POLITICAL STATUS OF THE PEOPLE OF THE PHILIPPINE ISLANDS, AND TO PROVIDE A MORE AUTONOMOUS GOVERNMENT FOR THOSE ISLANDS.

PREAMBLE

Whereas it was never the intention of the people of United States in the incipency of the war with Spain to make it a war of conquest or for territorial aggrandizement; and

Whereas it is, as it has always been, the purpose of the people of the United States to withdraw their sovereignty over Philippine Islands and to recognize their independence as soon as a stable government can be established therein; and

Whereas for the speedy accomplishment of such purpose it is desirable to place in the hands of the people of the Philippines as large a control of their domestic affairs as can be given them without, in the meantime, impairing the exercise of the rights of sovereignty by the people of the United States, in order that, by the use and exercise of popular franchise and governmental

powers, they may be the better prepared to fully assume the responsibilities and enjoy all the privileges of complete independence: Therefore

Section 1.—The Philippines

Be it enacted by the Senate and House of Representatives the United States of America in Congress assembled, That the provisions of this Act and the name “The Philippines” as used in this Act shall apply to and include the Philippine Islands ceded to the United States Government by the treaty of peace concluded between the United States and Spain on the eleventh day of April, eighteen hundred and ninety-nine, the boundaries of which are set forth in Article III of said treaty, together with those islands embraced in the treaty between Spain and the United States concluded at Washington on the seventh day of November, nineteen hundred.

Section 2.—Philippine Citizenship and Naturalization

That all inhabitants of the Philippine Islands who were Spanish subjects on the eleventh day of April, eighteen hundred and ninety-nine, and then resided in said Islands, and their children born subsequent thereto, shall be deemed and held to be citizens of the Philippine Islands, except such as shall have elected to preserve their allegiance to the Crown of Spain in accordance with the provisions of the treaty of peace between the United States and Spain, signed at Paris December tenth, eighteen hundred and ninety-eight, and except such others as have since become citizens of some other country: Provided, That the Philippine Legislature, herein provided for, is hereby authorized to provide by law for the acquisition of Philippine citizenship by those natives of the Philippine Islands who do not come within the foregoing provisions, the natives of the insular possessions of the United States, and such other persons residing in the Philippine Islands who are citizens of the United States, or who could become citizens of the United States under the laws of the United States if residing therein.

Section 3.—Bill of Rights

(a) Due process and eminent domain.—That no law shall be enacted in said Islands which shall deprive any person of life, liberty, or property without due process of law, or deny to any person therein the equal protection of the laws. Private property shall not be taken for public use without just compensation.

(b) Rights of persons accused of crime.—That in all criminal prosecutions the accused shall enjoy the right to be heard by himself and counsel, to demand the nature and cause of the accusation against him, to have a speedy and public trial, to meet the witnesses face to face, and to have compulsory process to compel the attendance of witnesses in his behalf.

That no person shall be held to answer for a criminal offense without due process of law; and no person for the same offense shall be twice put in jeopardy of punishment, nor shall be compelled in any criminal case to be a witness against himself.

That all persons shall before conviction be bailable by sufficient sureties, except for capital offenses.

(c) Obligation of contracts.—That no law impairing the obligation of contracts shall be enacted.

(d) Imprisonment for debt.—That no person shall be imprisoned for debt.

(e) Suspension of habeas corpus.—That the privilege of the writ of habeas corpus shall not be suspended, unless when in cases of rebellion, insurrection, or invasion the public safety may require it, in either of which event the same may be suspended by the President, or by the Governor-General, wherever during such period the necessity for such suspension shall exist.

(f) Ex post facto laws, primogeniture, titles of nobility.—That no ex post facto law or bill of attainder shall be enacted nor shall the law of primogeniture ever be in force in the Philippines.

That no law granting a title of nobility shall be enacted, and no person holding any office of profit or trust in said Islands shall, without the consent of the Congress of the United States, accept any present, emolument, office, or title of any kind whatever from any king, queen, prince, or foreign state

(g) Bail and punishment.—That excessive bail shall not required, nor excessive fines imposed, nor cruel and unusual punishment inflicted.

(h) Unreasonable searches.—That the right to be secured against unreasonable searches and seizures shall not be violated.

(i) Slavery.—That slavery shall not exist in said Islands; nor shall involuntary servitude exist therein except as a punishment for crime whereof the party shall have been duly convicted.

(j) Freedom of speech.—That no law shall be passed abridging the freedom of speech or of the press, or the right of the people peaceably to assemble and petition the Government for redress grievances.

(k) Freedom of religion.—That no law shall be made respecting an establishment of religion or prohibiting the free exercise thereof, and that the free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed; and no religious test shall be required for the exercise of civil or political rights. No public money or property shall ever be appropriated, applied, or used, directly or indirectly, for the use, benefit, or support of any sect, church, denomination, sectarian institution, or system of religion, or for the use, benefit, or support of any priest, preacher, minister, or other religious teacher or dignitary as such.

(l) Polygamy.—Contracting of polygamous or plural marriages hereafter is prohibited. That no law shall be construed to permit polygamous or plural marriages.

(m) How public funds to be spent.—That no money shall be paid out of the treasury except in pursuance of an appropriation by law.

(n) Uniform tax.—That the rule of taxation in said Islands shall be uniform.

(o) Subject and title of bills.—That no bill which may be enacted into law shall embrace more than one subject, and that subject shall be expressed in the title of the bill.

(p) Warrants of arrest.—That no warrant shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched and the person or things to be seized

(q) Special funds.—That all money collected on any tax levied or assessed for a special purpose shall be treated as a special fund in the treasury and paid out for such purpose only.

Section 4.—Expenses of Government

That all expenses that may be incurred on account of the Government of the Philippines for salaries of officials and the conduct of their offices and departments, and all expenses and obligations contracted for the internal improvement or development of the Islands, not, however, including defenses, barracks, and other works undertaken by the United States, shall except as otherwise specifically provided by the Congress, be paid by the Government of the Philippines.

Section 5.—Inapplicability of American Statutes

That the statutory laws of the United States hereafter enacted shall not apply to the Philippine Islands, except when specifically so provided, or it is so provided in this Act.

Section 6.—Continuance of Philippine Laws

That the laws now in the Philippines shall continue in force and effect, except as altered, amended, or modified herein, until altered, amended, or repealed by the legislative authority herein provided or by act of Congress of the United States.

Section 7.—Legislative Power to Change Laws

That the legislative authority herein provided shall have power, when not inconsistent with this act, by due enactment to amend, alter, modify, or repeal any law, civil or criminal continued in force by this Act as it may from time to time see fit.

This power shall specifically extend with the limitation herein provided as to the tariff to all laws relating to revenue and taxation in effect in the Philippines.

Section 8.—General Legislative Power

That general legislative power, except as otherwise herein provided, is hereby granted to the Philippine legislature, authorized by this Act.

Section 9.—Public Property and Legislation on Public Domain, Timber and Mining

That all the property and rights which may have been acquired in the Philippine Islands by the United States under the treaty of peace with Spain, signed December tenth, eighteen hundred and ninety-eight, except such land or other property as has been or shall be designated by the President of the United States for military and other reservations of the Government of the United States, and all lands which may have been subsequently acquired by the Government of the Philippine Islands by purchase under the provisions of sections sixty-three and sixty-four of the Act of Congress approved July first, nineteen hundred and two, except such as may have heretofore been sold and disposed of in accordance with the provisions of said act of Congress, are hereby placed under the control of the government of said Islands to be administered or disposed of for the benefit of the inhabitants thereof, and the Philippine Legislature shall have power to legislate with respect to all such matters as it may deem advisable; but acts of the Philippine Legislature with reference to land of the public domain, timber, and mining hereafter enacted, shall not have the force of law until approved by the President of the United States: Provided, That upon the approval of such an act by the Governor-General, it shall be by him forthwith transmitted to the President of the United States, and he shall approve or disapprove the same within six months from and after its enactment and submission for his approval, and if not disapproved within such time it shall become a law the same as if it had been specifically approved: Provided, further, That where lands in the Philippine Islands have been or may be reserved for any public purpose of the United States, and, being no longer required for the purpose for which reserved, have been or may be, by order of the President, placed under the control of the government of said Islands to be administered for the benefit of the inhabitants thereof, the order of the President shall be regarded as effectual to give the government of said Islands full control and power to administer and dispose of such lands for the benefit of the inhabitants of said Islands.

Section 10.—Laws on Tariff, Immigration and Coinage

That while this Act provides that the Philippine Government shall have the authority to enact a tariff law the trade relations between the Islands and the United States shall continue to be governed exclusively by laws of the Congress of the United States: Provided, That tariff acts or acts amendatory to the tariff of the Philippine Islands shall not become law until they shall receive the approval of the President of the United States, nor shall any act of the Philippine Legislature affecting immigration or the currency or coinage laws of the Philippines become a law until it has been approved by the President of the United States: Provided, further, That the President shall approve or disapprove any act mentioned in the foregoing proviso within six months from and after its enactment and submission for his approval, and if not disapproved within such time it shall become a law the same as if it had been specifically approved.

Section 11.—Taxes and Public Debts

That no export duties shall be levied or collected on, exports from the Philippine Islands, but taxes and assessments on property, and license fees for franchises and privileges, and internal taxes, direct or indirect, may be imposed for the purposes of the Philippine Government and the

provincial and municipal governments thereof, respectively, as may be provided and defined by acts of the Philippine Legislature, and, where necessary to anticipate taxes and revenues, bonds and other obligations may be issued by the Philippine Government or any provincial or municipal government therein, as may be provided by law and to protect the public credit: Provided, however, That the entire indebtedness of the Philippine Government created by the authority conferred therein shall not exceed at any one time the sum of \$15,000,000, exclusive of those obligations known as friar land bonds, nor that of any province or municipality a sum in excess of seven per centum of the aggregate tax valuation of its property at any one time.

Section 12.—The Philippine Legislature

That general legislative powers in the Philippines, except as herein otherwise provided, shall be vested in a Legislature which shall consist of two houses, one the Senate and the other the House of Representatives, and the two houses shall be designated “the Philippine Legislature”: Provided, That until the Philippine Legislature as herein provided shall have been organized the existing Philippine Legislature shall have all legislative authority herein granted to the Government of the Philippine Islands, except such as may now be within the exclusive jurisdiction of the Philippine Commission, which is so continued until the organization of the Legislature herein provided for the Philippines. When the Philippine Legislature shall have been organized, the exclusive legislative jurisdiction and authority exercised by the Philippine Commission shall thereafter be exercised by the Philippine Legislature.

Section 13.—Election and Qualification of Senators

That the members of the Senate of the Philippines, except as herein provided, shall be elected for terms of six and three years, as hereinafter provided, by the qualified electors of the Philippines. Each of the senatorial districts defined as hereinafter provided shall have the right to elect two senators. No person shall be an elective member of the Senate of the Philippines who is not a qualified elector and over thirty years of age, and who is not able to read and write either the Spanish or English language, and who has not been a resident of the Philippines for at least two consecutive years and an actual resident of the senatorial district from which chosen for a period of at least one year immediately prior to his election.

Section 14.—Election and Qualifications of Representatives

That the members of the House of Representatives shall, except as herein provided, be elected triennially by the qualified electors of the Philippines. Each of the representative districts hereinafter provided for shall have the right to elect one representative. No person shall be an elective member of the House of Representatives who is not a qualified elector and over twenty-five years of age, and who is not able to read and write either the Spanish or English language, and who has not been an actual resident of the district from which elected for at least one year immediately prior to his election: Provided, That the members of the present Assembly elected on the first Tuesday in June, nineteen hundred and sixteen, shall be the members of the House of

Representatives from their respective districts for the term expiring in nineteen hundred and nineteen.

Section 15.—Qualifications of Voters

That at the first election held pursuant to this Act, the qualified electors shall be those having the qualifications of voters under the present law; thereafter and until otherwise provided by the Philippine Legislature herein provided for the qualifications of voters for senators and representatives in the Philippines and all officers elected by the people shall be as follows:

Every male person who is not a citizen or subject of a foreign power twenty-one years of age or over (except insane and feeble-minded persons and those convicted in a court of competent jurisdiction of an infamous offense since the thirteenth day of August, eighteen hundred and ninety-eight) who shall have been a resident of the Philippines for one year and of the municipality in which he shall offer to vote for six months next preceding the day of voting, and who is comprised within one of the following classes:

- (a) Those who under existing law are legal voters and have exercised the right of suffrage.
- (b) Those who own real property to the value of 500 pesos, or who annually pay 30 pesos or more of the established taxes.
- (c) Those who are able to read and write either Spanish, English, or a native language.

Section 16.—Senate and Representative Districts, and Appointive Senators and Representatives

That the Philippine Islands shall be divided into twelve senate districts, as follows:

First district: Batanes, Cagayan, Isabela, Ilocos Norte, and Ilocos Sur.

Second district: La Union, Pangasinan, and Zambales.

Third district: Tarlac, Nueva Ecija, Pampanga, and Bulacan.

Fourth district: Bataan, Rizal, Manila, and Laguna.

Fifth district: Batangas, Mindoro, Tayabas, and Cavite.

Sixth district: Sorsogon, Albay, and Ambos Camarines.

Seventh district: Iloilo and Capiz.

Eight district: Negros Occidental, Negros Oriental, Antique, and Palawan.

Ninth district: Leyte and Samar.

Tenth district: Cebu.

Eleventh district: Surigao, Misamis, and Bohol.

Twelfth district: The Mountain Province, Baguio, Nueva Vizcaya, and the Department of Mindanao and Sulu.

The representative districts shall be the eighty-one now provided by law, and three in the Mountain Province, one in Nueva Vizcaya, and five in the Department of Mindanao and Sulu.

The first election under the provisions of this Act shall be held on the first Tuesday of October, nineteen hundred and sixteen, unless the Governor-General in his discretion shall fix another date not earlier than thirty nor later than sixty days after the passage of this Act: Provided, That the Governor-General's proclamation shall be published at least thirty days prior to the date fixed for the election, and there shall be chosen at such election one senator from each senate district for a term of three years and one for six years. Thereafter one senator from each district shall be elected from each senate district for a term of six years: Provided, That the Governor-General of the Philippine Islands shall appoint, without the consent of the Senate and without restriction as to residence, senators and representatives who will, in his opinion, best represent the senate district and those representative districts which may be included in the territory not now represented in the Philippine Assembly: Provided further, That thereafter elections shall be held only on such days and under such regulations as to ballots, voting, and qualifications of electors as may be prescribed by the Philippine Legislature, to which is hereby given authority to redistrict the Philippine Islands and modify, amend, or repeal any provision of this section, except such as refer to appointive senators and representatives.

Section 17.—Tenure of Senators and Representatives

That the terms of office of elective senators and representatives shall be six and three years, respectively, and shall begin on the date of their election. In case of vacancy among the elective members of the Senate or in the House of Representatives, special elections may be held in the districts wherein such vacancy occurred under such regulations as may be prescribed by law, but senators or representatives elected in such cases shall hold office only for the unexpired portion of the term wherein the vacancy occurred. Senators and representatives appointed by the Governor-General shall hold office until removed by the Governor-General.

Section 18.—Organization of the Legislature and Privileges of Members

(a) Control of each house over its members and proceedings.—That the Senate and House of Representatives, respectively, shall be the sole judges of the elections, returns, and qualifications of their elective members, and each house may determine the rules of its proceedings, punish its

members for disorderly behavior, and, with the concurrence of two-thirds, expel an elective member.

(b) Organization, quorum, and sessions.—Both houses shall convene at the capital on the sixteenth day of October next following the election and organize by the election of a speaker or a presiding officer, a clerk, and a sergeant-at-arms for each house, and such other officers and assistants as may be required. A majority of each house shall constitute a quorum to do business, but a smaller number may meet, adjourn from day to day, and compel the attendance of absent members. The Legislature shall hold annual sessions, commencing on the sixteenth day of October, or, if the sixteenth day of October be a legal holiday, then on the first day following which is not a legal holiday, in each year. The Legislature may be called in special session at any time by the Governor-General for general legislation, or for action on such specific subjects as he may designate. No special session shall continue longer than thirty days, and no regular shall continue longer than one hundred days, exclusive of Sundays.

The Legislature is hereby given the power and authority to change the date of the commencement of its annual sessions.²

(c) Compensation and privileges of members.—The senators and representatives shall receive an annual compensation for their services, to be ascertained by law, and paid out of the treasury of the Philippine Islands. The senators and representatives shall, in all cases except treason, felony, and breach of the peace, be privileged from arrest during their attendance at the session of their respective houses and in going to and returning from the same; and for any speech or debate in either house they shall not be questioned in any other place.

(d) Disqualifications of members.—No senator or representative shall, during the time for which he may have been elected, be eligible to any office the election to which is vested in the Legislature, nor shall be appointed to any office of trust or profit which shall have been created or the emoluments of which shall have been increased during such term.

Section 19. — Procedure for Law-Making

(a) Legislative journal and the veto power.—That each house of the Legislature shall keep a journal of its proceedings and, from time to time, publish the same; and the yeas and nays of the members of either house, on any question, shall, upon demand of one-fifth of those present, be entered on the journal, and every bill and joint resolution which shall have passed both houses shall, before it becomes a law, be presented to the Governor-General. If he approve the same, he shall sign it; but if not, he shall return it with his objections to that house in which it shall have originated, which shall enter the objections at large on its journal and proceed to reconsider it. If, after such reconsideration, two-thirds of the members elected to that house shall agree to pass the same, it shall be sent, together with the objections, to the other house, by which it shall likewise be reconsidered, and if approved by two-thirds of all the members elected to that house it shall be sent to the Governor-General, who, in case he shall then not approve, shall transmit the same to the President of the United States. The vote of each house shall be by the yeas and nays, and the

names of the members voting for and against shall be entered on the journal. If the President of the United States approve the same, he shall sign it and it shall become a law. If he shall not approve the same, he shall return it to the Governor-General, so stating, and it shall not become a law: Provided, That if any bill or joint resolution shall not be returned by the Governor-General as herein provided within twenty days (Sundays excepted) after it shall have been presented to him the same shall become a law in like manner as if he had signed it, unless the Legislature by adjournment prevent its return, in which case it shall become a law unless vetoed by the Governor-General within thirty days after adjournment: Provided, further, That the President of the United States shall approve or disapprove an act submitted to him under the provisions of this section within six months from and after its enactment and submission for its approval; and if not approved within such time, it shall become a law the same as if it had been specifically approved.

(b) The veto on appropriations.—The Governor-General shall have the power to veto any particular item or items of an appropriation bill, but the veto shall not affect the item or items to which he does not object. The item or items objected to shall not take effect except in the manner heretofore provided in this section as to bills and joint resolutions returned to the Legislature without his approval.

(c) Report of laws to Congress.—All laws enacted by the Philippine Legislature shall be reported to the Congress of the United States, which hereby reserves the power and authority to annul the same.

(d) Revisal of former appropriations.—If at the termination of any fiscal year the appropriations necessary for the support of Government for the ensuing fiscal year shall not have been made, the several sums appropriated in the last appropriation bills for the objects and purposes therein specified, so far as the same may be done, shall be deemed to be reappropriated for the several objects and purposes specified in said last appropriation bill; and until the Legislature shall act in such behalf the treasurer shall, when so directed by the Governor-General, make the payments necessary for the purposes aforesaid.

Section 20.—The Resident Commissioners

(a) Selection and tenure.—That at the first meeting of the Philippine Legislature created by this Act and triennially thereafter there shall be chosen by the Legislature two Resident Commissioners to the United States, who shall hold their office for a term of three years beginning with the fourth day of March following their election, and who shall be entitled to an official recognition as such by all Departments upon presentation to the President of a certificate of election by the Governor-General of said Islands.

(b) Compensation.—Each of said Resident Commissioners shall, in addition to the salary and the sum in lieu of mileage now allowed by law, be allowed the same sum for stationery and for the pay of necessary clerk hires as is now allowed to the members of the House of Representatives

of the United States, to be paid out of the Treasury of the United States, and the franking privilege allowed by law to members of Congress.

(c) Qualifications.—No person shall be eligible to election as Resident Commissioner who is not a bona fide elector of said Islands and who does not owe allegiance to the United States and who is not more than thirty years of age and who does not read and write the English language. The present two Resident Commissioners shall hold office until the fourth of March, nineteen hundred and seventeen.

(d) Temporary vacancy.—In case of vacancy in the position of Resident Commissioner caused by resignation or otherwise, the Governor-General may make temporary appointments until the next meeting of the Philippine Legislature, which shall then fill such vacancy; but the Resident Commissioner thus elected shall hold office only for the unexpired portion of the term wherein the vacancy occurred.

Section 21.—The Governor-General

(a) Title, appointment, residence.—That the supreme executive power shall be vested in an executive officer, whose official title shall be “The Governor-General of the Philippine Islands.” He shall be appointed by the President, by and with the advice and consent of the Senate of the United States, and hold his office at the pleasure of the President and until his successor is chosen and qualified. The Governor-General shall reside in the Philippine Islands during his official incumbency, and maintain his office at the seat of Government.

(b) Powers and duties.—He shall, unless otherwise herein provided, appoint, by and with the consent of the Philippine Senate, such officers as may now be appointed by the Governor-General, or such as he is authorized by this Act to appoint, or whom may hereafter be authorized by law to appoint; but appointments made while the Senate is not in session shall be effective either until disapproval or until the next adjournment of the Senate. He shall have general supervision and control of all of the departments and bureaus of the Government in the Philippine Islands as far as is not inconsistent with the provisions of this Act, and shall be commander in chief of all locally created armed forces and militia. He is hereby vested with the exclusive power to grant pardons and reprieves and remit fines and forfeitures, and may veto any legislation enacted as herein provided. He shall submit within ten days of the opening of each regular session of the Philippine Legislature a budget of receipts and expenditures, which shall be the basis of the annual appropriation bill. He shall commission all officers that he may be authorized to appoint. He shall be responsible for the faithful execution of the laws of the Philippine Islands of the United States operative within the Philippine Islands, and whenever it becomes necessary he may call upon the commanders of the military and naval forces of the United States in the Islands, or summon the posse comitatus, or call out the militia or other locally created armed forces, to prevent or suppress lawless violence, invasion, insurrection, or rebellion; and he may, in case of rebellion or invasion, or imminent danger thereof, when the public safety requires it, suspend the privileges of the writ of habeas corpus, or place the Islands, or any part thereof, under martial law: Provided, That whenever the Governor-General shall

exercise his authority, he shall at once notify the President of the United States thereof, together with the attending facts and circumstances and the President shall have power to modify or vacate the act of the Governor-General.

(c) Report of the Governor-General.—He shall annually and at such other times as he may be required make such official report of the transactions of the Government of the Philippine Islands to an executive department of the United States to be designated by the President, and his said annual report shall be transmitted to the Congress of the United States; and he shall perform such additional duties and functions as may in pursuance of the law be delegated or assigned to him by the President.

Section 22.—The Executive Departments and the Legislature

(a) Temporary continuance of executive heads.—That, except as provided otherwise in this Act, the executive departments of the Philippine Government shall continue as now authorized by law until otherwise provided by the Philippine Legislature. When the Philippine Legislature herein provided shall convene and organize, the Philippine Commission, as such, shall cease and determine, and the members thereof shall vacate their offices as members of said Commission: Provided, That the heads of executive departments shall continue to exercise their executive functions until the heads of departments provided by the Philippine Legislature pursuant to the provisions of this Act are appointed and qualified.

(b) Legislative powers over the departments, and limitations of such.—The Philippine Legislature may thereafter by appropriate legislation increase the number or abolish any of the executive departments, or make such changes in the names and duties thereof as it may see fit, and shall provide for the appointment and removal of the heads of the executive departments by the Governor-General: Provided, That all executive functions of the Government must be directly under the Governor-General or within one of the executive departments under the supervision and control of the Governor-General

(c) Provisions for a bureau for non-Christians.—There is hereby established a bureau, to be known as the Bureau of Non-Christian Tribes, which said bureau shall be embraced in one of the executive departments to be designated by the Governor-General, and shall have general supervision over the public affairs of the inhabitants of the territory represented in the Legislature by appointive senators and representatives.

Section 23.—The Vice-Governor

(a) Appointment and powers; Bureaus of Education and Health.—That there shall be appointed by the President, by and with the advice and consent of the Senate of the United States, a Vice-Governor of the Philippine Islands, who shall have all the powers of the Governor-General in the case in the of a vacancy or temporary removal, resignation, or disability of the Governor-General, or in case of his temporary absence; and the said Vice-Governor shall be the head of the executive department, known as the Department of Public Instruction, which shall include the

Bureau of Education and the Bureau of Health, and he may be assigned such other executive duties as the Governor-General may designate.

(b) Bureaus under the Department of the Interior.—Other bureaus now included in the Department of Public Instruction shall, until otherwise provided by the Philippine Legislature, be included in the Department of the Interior.

(c) Succession to the office of Governor-General.—The President may designate the head of an executive department of the Philippine government to act as Governor-General in the case of a vacancy, the temporary removal, resignation, or disability of the Governor-General and the Vice-Governor, or their temporary absence, and the head of the department thus designated shall exercise all the powers and perform all the duties of the Governor-General during such vacancy, disability, or absence.

Section 24.—The Insular Auditor

(a) Appointment, powers, duties.—That there shall be appointed by the President an Auditor, who shall examine, audit, and settle all accounts pertaining to the revenues and receipts from whatever source of the Philippine Government and of the provincial and municipal governments of the Philippines, including trust funds derived from bond issues; and audit, in accordance with law and administrative regulations, all expenditures of funds or Property pertaining to or held in trust by the Government or the Provinces or municipalities thereof. He shall perform a like duty with respect to all Government branches.

He shall keep the general accounts of the Government and preserve the vouchers pertaining thereto.

It shall be the duty of the Auditor to bring to the attention of the proper administrative officer expenditures of funds or property which, in his opinion, are irregular, unnecessary, excessive, or extravagant.

(b) Deputy Auditor and Assistant.—There shall be a Deputy Auditor appointed in the same manner as the Auditor. The Deputy Auditor shall sign such official papers as the Auditor may designate and perform such other duties as the Auditor may prescribe, and in case of the death, resignation, sickness, or other absence of the Auditor from his office, from any cause, the Deputy Auditor shall have charge of such office. In case of the absence from duty, from any cause, of both the Auditor and the Deputy Auditor, the Governor-General may designate an assistant, who shall have charge of the office.

(c) Jurisdiction of Auditor.—The administrative jurisdiction of the Auditor over accounts, whether of funds or property, and all vouchers and records pertaining thereto, shall be exclusive. With the approval of the Governor-General he shall from time to time make and promulgate general or special rules and regulations not inconsistent with law covering the method of accounting for public funds and property, and funds and property held in trust by the Government or any of its branches: Provided, That any officer accountable for public funds or

property may require such additional reports or returns from his subordinates or others as he may deem necessary for his own information and protection.

(d) Decisions of Auditor.—The decisions of the Auditor shall be final and conclusive upon the executive branches of the Government, except that appeal therefrom may be taken by the party aggrieved or the head of the department concerned within one year, in the manner hereinafter prescribed. The Auditor shall, except as hereinafter provided, have like authority as that conferred by law upon the several auditors of the United States and the Comptroller of the United States Treasury and is authorized to communicate directly with any persons having claims before him for settlement, or with any department, officer, or person having official relations with his office.

(e) Financial reports.—As soon after the close of each fiscal year as the accounts of said year may be examined and adjusted the auditor shall submit to the Governor-General and the Secretary of War an annual report of the fiscal concerns of the Government, showing the receipts and disbursements of the various departments and bureaus of the Government and of the various provinces and municipalities, and make such other reports as may be required of him by the Governor-General or the Secretary of War.

(f) Right of investigation.—In the execution of their duties the Auditor and the Deputy Auditor are authorized to summon witnesses, administer oaths, and to take evidence, and, in the pursuance of these provisions, may issue subpoenas and enforce the attendance of witnesses, as now provided by law.

(g) Supervision.—The office of the Auditor shall be under the general supervision of the Governor-General and shall consist of the Auditor and Deputy Auditor and such necessary assistants as may be prescribed by law.

Section 25.—Appeal from Auditor's Decision

(a) Time and form, of appeal.—That any person aggrieved by the action or decision of the Auditor in the settlement of his account or claim may, within one year, take an appeal in writing to the Governor-General, which appeal shall specifically set forth the particular action of the Auditor to which exception is taken with the reason and authorities relied on for reversing such decision.

(b) Final decision.—If the Governor-General shall confirm the action of the Auditor, he shall so indorse the appeal and transmit it to the Auditor, and the action shall thereupon be final and conclusive. Should the Governor-General fail to sustain the action of the Auditor, he shall forthwith transmit his grounds of disapproval to the Secretary of War, together with the appeal and the papers necessary to a proper understanding of the matter. The decision of the Secretary of War in such case shall be final and conclusive.

Section 26.—The Judiciary

(a) Jurisdiction of courts and appointment of judges.—That the Supreme Court and the Courts of First Instance of the Philippine Islands shall possess and exercise jurisdiction as heretofore provided and such additional jurisdiction as shall hereafter be prescribed by law. The municipal courts of said Islands shall possess and exercise jurisdiction as now provided by law, subject in all matters to such alteration and amendment as may be hereafter enacted by law; and the chief

justice and associate justices of the supreme court shall hereafter be appointed by the President, by and with the advice and consent of the Senate of the United States. The judges of the court of first instance shall be appointed by the Governor-General, by and with the advice and consent of the Philippine Senate: Provided, That the admiralty jurisdiction of the supreme court and courts of first instance shall not be changed except by act of Congress. That in all cases pending under the operation of existing laws, both criminal and civil, the jurisdiction shall continue until final judgment and determination.

Section 27.—Cases Appealable to the United States Supreme Court

That the Supreme Court of the United States shall have jurisdiction to review, revise, reverse, modify, or affirm the final judgments and decrees of the supreme court of the Philippine Islands in all actions, cases, causes, and proceedings now pending therein or hereafter determined thereby in which the Constitution or any statute, treaty, title, right or privilege of the United States is involved, or in causes in which the value in controversy exceeds \$25,000, or in which the title or possession of real estate exceeding in value the sum of \$25,000, to be ascertained by the oath of either party or of other competent witnesses, is involved or brought in question; and such final judgments or decrees may and can be reviewed, revised, modified, or affirmed by said Supreme Court of the United States on appeal or writ of error by the party aggrieved within the same time, in the same manner, under the same regulation, and by the same procedure, as far as applicable, as the final judgments and decrees of the district courts of the United States.³

Section 28.—Franchises

(a) Scope of franchises and power to change them.—That the Government of the Philippine Islands may grant franchises and rights, including the authority to exercise the right of eminent domain, for the construction and operation of works of public utility and service, and may authorize said works to be constructed and maintained over and across the public property of the United States, including streets, highways, squares, and reservations, and over similar property of the Government of said Islands, and may adopt rules and regulations under which the provincial and municipal governments of the Islands may grant the right to use and occupy such public property belonging to said provinces or municipalities: Provided, That no private property shall be damaged or taken for any purpose under this section without just compensation, and that such authority to take and occupy land shall not authorize the taking, use, or occupation of any land except such as is required for the actual necessary purposes for which the franchise is granted, and that no franchise or right shall be granted to any individual, firm, or corporation except under the conditions that it shall be subject to amendment, alteration, or repeal by the Congress of the United States, and that lands or right of use and occupation of lands thus granted shall revert to the governments by which they were respectively granted upon the termination of the franchises and rights under which they were granted or upon the revocation or repeal.

(b) Conditions on grant of franchise, and revocation.—That all franchises or rights granted under this Act shall forbid the issue of stock or bonds except in exchange for actual cash or for property at a fair valuation equal to the par value of the stock or bonds so issued; shall forbid the declaring of stock or bond dividends, and, in the case of public service corporations, shall provide for the effective regulation of the charges thereof, for the official inspection and regulation of the books

and accounts of such corporations, and for the payment of a reasonable percentage of gross earnings into the treasury of the Philippine Islands or of the province or municipality within which such franchises are granted and exercised: Provided, further, That it shall be unlawful for any corporation organized under this Act, or for any person, company, or corporation receiving any grant, franchise, or concession from the Government of said Islands, to use, employ, or contract for the labor of persons held in involuntary servitude; and any person, company, or corporation so violating the provisions of this Act shall forfeit all charters, grants, or franchises for doing business in said Islands, in an action or proceeding brought for that purpose in any court of competent jurisdiction by any officer of the Philippine Government, or on the complaint of any citizen of the Philippines, under such regulations and rules as the Philippine Legislature shall prescribe, and in addition shall be deemed guilty of an offense, and shall be punished by a fine of not more than \$10,000.

Section 29.—Salaries

(a) Funds for salaries.—That, except as in this Act otherwise provided, the salaries of all the officials of the Philippines not appointed by the President, including deputies, assistants, and other employees, shall be such and be so paid out of the revenues of the Philippines as shall from time to time be determined by the Philippine Legislature; and if the Legislature shall fail to make an appropriation for such salaries, the salaries so fixed shall be paid without the necessity of further appropriations therefor. The salaries of all officers and all expenses of the offices of the various officials of the Philippines appointed as herein provided by the President shall also be paid out of the revenues of the Philippines

(b) Salaries of certain officers.—The annual salaries of the following-named officials appointed by the President and so to be paid shall be: The Governor-General, \$18,000; in addition thereto he shall be entitled to the occupancy of the buildings heretofore used by the chief executive of the Philippines, with the furniture and effects therein, free of rental; Vice-Governor, \$10,000; Chief Justice of the Supreme Court, \$8,000; Associate Justice of the Supreme Court, \$7,500 each; Auditor, \$6,000; Deputy Auditor, \$3,000.

Section 30.—Salaries of Municipal and Provincial Officers

That the provisions of the foregoing section shall not apply to provincial and municipal officials; their salaries and the compensation of their deputies, assistants, and other help, as well as all other expenses incurred by the provinces and municipalities, shall be paid out of the provincial and municipal revenues in such manner as the Philippine Legislature shall provide.

Section 31.—Continuance of Laws

That all laws or parts of laws applicable to the Philippines not in conflict with any of the provisions of this Act are hereby continued in force and effect.

Approved, August 29, 1916.

The Philippine Organic Act of 1902

ORGANIC ACT

AN ACT TEMPORARILY TO PROVIDE FOR THE ADMINISTRATION OF THE AFFAIRS OF CIVIL GOVERNMENT IN THE PHILIPPINE ISLANDS, AND FOR OTHER PURPOSES

57th Congress of the United States of America, First Session, 1902

ANNOTATION

The Philippine Bill of 1902 is one of the most important decrees enacted by the American government in the Philippines. Entitled “An Act Temporarily to Provide for the Administration of the Affairs of Civil Government in the Philippine Islands, and for Other Purposes,” this law contained two important provisions that strengthen both the civil and human rights of the Filipino people and bestowed on them the privilege of legislation.

Also known as Cooper Act, it provided a Bill of Rights for the Filipinos that protected their rights: to live, to acquire property, to practice their religion, to be subjected to due process, to exercise their obligations, to enjoy compensations due to them, and freedom of expression. But the most important element contained in the bill was its clauses that called for the creation of a lower legislative branch with elected Filipino representatives as legislators.

The bill also stated the American government’s readiness to call for a general election in the islands should insurrection cedes and complete peace is maintained as attested by the Philippine Commission. The decree mandates the US President to order the Philippine Commission to perform a census of the islands and make a detailed report about the population and matters about the people that may be deemed by the Commission as necessary, while peace is being upheld. Two years after the publication of the result of the census, and upon the satisfaction of the Philippine Commission and the US President, a general election shall be called and the elected Filipinos, not less than fifty but not greater than one hundred in number, will comprise the Philippine Assembly—the body that will act as the lower house of the legislature in the Philippines.

The Filipinos became very cooperative with the promises offered by the bill. Peace was maintained, a census was conducted and after its publication, an election was held on 30 July 1907 and the assembly was convened and inaugurated on 16 October 1907 at the Manila Grand Opera House. The Nacionalista Party, espousing “immediate and complete independence” headed by Sergio Osmeña garnered the majority of the seats. The First Philippine Assembly is best remembered for its effort in reviving the issue of independence and for passing laws that improved the type of education enjoyed by the Filipinos.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the action of the President of the United States in creating the Philippine Commission and authorising said Commission to exercise the powers of government to the extent and in the manner and form and subject to the regulation and control set forth in the

instructions of the President to the Philippine Commission, dated April seventh, nineteen hundred, and in creating the offices of Civil Governor and Vice-Governor of the Philippine Islands, and authorising said Civil Governor and Vice-Governor to exercise the powers of government to the extent and in the manner and form set forth in the Executive order dated June twenty-first, nineteen hundred and one, and is establishing four Executive Departments of government in said Islands as set forth in the Act of the Philippine Commission entitled "An Act providing an organisation for the Departments of the Interior, of Commerce and Police, of Finance and Justice, and of Public Instruction," enacted September sixth, nineteen hundred and one, is hereby approved, ratified, and confirmed, and until otherwise provided by law the said Islands shall continue to be governed as thereby and herein provided, and all laws passed hereafter by the Philippine Commission shall have an enacting clause as follows. "By authority of the United States, be it enacted by the Philippine Commission." The provisions of section eighteen hundred and ninety-one of the Revised Statutes of eighteen hundred and seventy eight shall not apply to the Philippine Islands.

Future appointments of Civil Governor, Vice-Governor, members of said Commission and heads of Executive Departments shall be made by the President, by and with the advice and consent of the Senate.

Section 2. That the action of the President of the United States heretofore taken by virtue of the authority vested in him as Commander in Chief of the Army and Navy, as set forth in his order of July twelfth, eighteen hundred and ninety-eight, whereby a land of duties and taxes as set forth by said order was to be levied and collected at all ports and places in the Philippine Islands upon passing into the occupation and possession of the forces of the United States, together with the subsequent amendments of said order, are hereby approved, ratified, and confirmed, and the actions of the authorities of the Government of the Philippine Islands taken in accordance with the provisions of said order and subsequent amendments, are hereby approved: Provided, that nothing contained in this section shall be held to amend or repeal an Act entitled "An Act temporarily to provide revenue for the Philippine Islands, and for other purposes," approved March eighth, nineteen hundred and two.

Section 3. That the President of the United States, during such time as and whenever the sovereignty and authority of the United States encounter armed resistance in the Philippine Islands, until otherwise provided by Congress, shall continue to regulate and control commercial intercourse with and within said Islands by such general rules and regulations as he, in his discretion, may deem more conducive to the public interests and the general welfare.

Section 4. That all inhabitants of the Philippine Islands continuing to reside therein who were Spanish subjects on the eleventh day of April, eighteen hundred and ninety-nine, and then resided in the Philippine Islands, and their children born subsequent thereto, shall be deemed and held to be citizens of the Philippine Islands and as such entitled to the protection of the United States, except such as shall have elected to preserve their allegiance to the Crown of Spain in accordance with the provisions of the treaty of peace between the United States and Spain signed at Paris December tenth, eighteen hundred and ninety-eight.

Section 5. That no law shall be enacted in said Islands which shall deprive any person of life, liberty, or property without due process of law, or deny to any person therein the equal protection of the laws.

That in all criminal prosecutions the accused shall enjoy the right to be heard by himself and counsel, to demand the nature and cause of the accusation against him, to have a speedy and public trial, to meet the witnesses face to face, and to have compulsory process to compel the attendance of witnesses in his behalf.

That no person shall be held to answer for a criminal offence without due process of law; and no person for the same offence shall be twice put in jeopardy of punishment, nor shall be compelled in any criminal case to be a witness against himself.

That all persons shall before conviction be bailable by sufficient sureties, except for capital offences.

That no law impairing the obligation of contracts shall be enacted.

That no person shall be imprisoned for debt.

That the privilege of the writ of habeas corpus shall not be suspended, unless when in cases of rebellion, insurrection, or invasion the public safety may require it, in either of which events the same may be suspended by the President, or by the Governor, with the approval of the Philippine Commission, wherever during such period the necessity for such suspension shall exist.

That no ex post facto law or bill of attainder shall be enacted.

That no law granting a title of nobility shall be enacted, and no person holding any office of profit or trust in said Islands, shall without the consent of the Congress of the United States, accept any present, emolument, office, or title of any kind whatever from any king, queen, prince, or foreign State.

That excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishment inflicted.

That the right to be secure against unreasonable searches and seizures shall not be violated.

That neither slavery, nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist in said Islands.

That no law shall be passed abridging the freedom of speech or of the press, or the right of the people peaceably to assemble and petition the Government for redress of grievances.

That no law shall be made respecting an establishment of religion or prohibiting the free exercise thereof, and that the free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed.

That no money shall be paid out of the Treasury except in pursuance of an appropriation by law.

That the rule of taxation in said Islands shall be uniform.

That no private or local bill which may be enacted into law shall embrace more than one subject, and that subject shall be expressed in the title of the bill.

That no warrant shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched and the person or things to be seized.

That all money collected on any tax levied or assessed for a special purpose shall be treated as a special fund in the Treasury and paid out for such purpose only.

Section 6. That whenever the existing insurrection in the Philippine Islands shall have ceased and a condition of general and complete peace shall have been established therein and the fact shall be certified to the President by the Philippine Commission, the President, upon being satisfied thereof, shall order a census of the Philippine Islands to be taken by said Philippine Commission; such census in its inquiries relating to the population shall take and make so far as practicable full report for all the inhabitants, of name, age, sex, race, or tribe, whether native or foreign born, literacy in Spanish native dialect, or language, or in English, school attendance, ownership of homes, industrial and social statistics, and such other information separately for each island, each province, and municipality, or other civil division, as the President and said Commission may deem necessary: Provided, that the President may, upon the request of said Commission, in his discretion, employ the service of the Census Bureau in compiling and promulgating the statistical information above provided for, and may commit to such Bureau any part or portion of such labour as to him may seem wise.

Section 7. That two years after the completion and publication of the census, in case such condition of general and complete peace with recognition of the authority of the United States shall have continued in the territory of said Islands not inhabited by Moros or other non-Christian tribes and such facts shall have been certified to the President by the Philippine Commission, the President upon being satisfied thereof shall direct Commission to call, and the Commission shall call, a general election for the choice of delegates to a popular assembly of the people of said territory in the Philippine Islands, which shall be known as the Philippine Assembly. After said Assembly shall have convened and organised, all the legislative power heretofore conferred on the Philippine Commission in all that part of said Islands not inhabited by Moros or other non-Christian tribes shall be vested in a Legislature consisting of two Houses – the Philippine Commission and the Philippine Assembly. Said Assembly shall consist of not less than fifty nor more than one hundred members to be apportioned by said Commission among the provinces as nearly as practicable according to population: Provided, that no province shall have less than one member: And provided further, that provinces entitled by population to more than one member may be divided into such convenient district as the said Commission may deem best.

Public notice of such division shall be given at least ninety days prior to such election, and the election shall be held under rules and regulations to be prescribed by law. The qualification of electors of such election shall be the same as is now provided by law in case of electors in municipal elections. The members of Assembly shall hold office for two years from the first day of January next following their election, and their successors shall be chosen by the people every second year thereafter. No person shall be eligible to such election who is not a qualified elector of the election district in which he may be chosen, owing allegiance to the United States and twenty-five years of age.

The Legislature shall hold annual sessions, commencing on the first Monday of February in each year and continuing not exceeding ninety days thereafter (Sundays and holidays not included); Provided, that the first meeting of the Legislature shall be held upon the call of the Governor within ninety days after the first election: And provided further, that if at the termination of any session the appropriations necessary for the support of Government shall not have been made, an amount equal to the sums appropriated in the last appropriation bills for such purposes shall be deemed to be appropriated; and until the Legislature shall act in such behalf the Treasurer may, with the advice of the Governor, make the payments necessary for the purposes aforesaid.

The Legislature may be called in special session at any time by the Civil Governor for general legislation, or for action on such specific subjects as he may designate. No special session shall continue longer than thirty days, exclusive of Sundays.

The Assembly shall be the judge of the elections, returns, and qualifications of its members. A majority shall constitute a quorum to do business, but a smaller number may adjourn from day to day and may be authorised to compel the attendance of absent members. It shall choose its Speaker and other officers, and the salaries of its members and officers shall be fixed by law. It may determine the rule of its proceedings, punish its members for disorderly behaviour, and with the concurrence of two-thirds expel a member. It shall keep a journal of its proceedings, which shall be published, and the yeas and nays of the members on any question shall, on the demand of one-fifth of those present, be entered on the journal.

Section 8. That at the same time with the first meeting of the Philippine Legislature, and biennially thereafter, there shall be chosen by said Legislature, each House voting separately, two resident Commissioners to the United States, who shall be entitled to an official recognition as such by all departments upon presentation to the President of a certificate of election by the Civil Governor of said Islands, and each of whom shall be entitled to a salary payable monthly by the United States at the rate of five thousand dollars per annum, and two thousand dollars additional to cover all expenses: Provided, that no person shall be eligible to such election who is not a qualified elector of said Islands, owing allegiance to the United States, and who is not thirty years of age.

Section 9. That the Supreme Court and the Courts of First Instance of the Philippine Islands shall possess and exercise jurisdiction as heretofore provided and such additional jurisdiction as shall hereafter be prescribed by the Government of said Islands, subject to the power of said

Government to change the practice and method of procedure. The municipal courts of said Islands shall possess and exercise jurisdiction as heretofore provided by the Philippine Commission, subject in all matters to such alteration and amendment as may be hereafter enacted by law; and the Chief Justice and Associate Justices of the Supreme Court shall hereafter be appointed by the President, by and with the advice and consent of the Senate, and shall receive the compensation heretofore prescribed by the Commission until otherwise provided by Congress. The judges of the Court of First Instance shall be appointed by the Civil Governor, by and with the advice and consent of the Philippine Commission: Provided, that the admiralty jurisdiction of the Supreme Court and Courts of First Instance shall not be changed except by Act of Congress.

Section 10. That the Supreme Court of the United States shall have jurisdiction to review, revise, reverse, modify, or affirm the final judgments and decrees of the Supreme Court of the Philippine Islands in all actions, cases, causes, and proceedings now pending therein or hereafter determined thereby in which the Constitution or any statute, treaty, title, right, or privilege of the United States is involved, or in causes in which the value in controversy exceeds twenty-five thousand dollars, or in which the title or possession of real estate exceeding in value the sum of twenty-five thousand dollars, to be ascertained by the oath of either party or of other competent witnesses, is involved or brought in question; and such final judgments or decrees may and can be reviewed, revised, reversed, modified, or affirmed by said Supreme Court of the United States on appeal or writ of error by the party aggrieved, in the same manner, under the same regulations, and by the same procedure, as far as applicable, as the final judgments and decrees of the Circuit Courts of the United States.

Section 11. That the Government of the Philippine Islands is hereby authorised to provide for the needs of commerce by improving the harbours and navigable waters of said Islands and to construct and maintain in said navigable waters and upon the shore adjacent thereto bonded warehouses, wharves, piers, light-houses, signal and life-saving stations, buoys, and like instruments of commerce, and to adopt and enforce regulations in regard thereto, including bonded warehouses wherein articles not intended to be imported into said Islands nor mingled with the property therein, but brought into a port of said Islands for reshipment to another country may be deposited in bond and reshipped to another country without the payment of customs duties or charges.

Section 12. That all the property and rights which may have been acquired in the Philippine Islands by the United States under the treaty of peace with Spain, signed December tenth, eighteen hundred and ninety-eight, except such land or other property as shall be designated by the President of the United States for military and other reservations of the Government of the United States, are hereby placed under the control of the Government of said Islands, to be administered for the benefit of the inhabitants thereof, except as provided in this Act.

Section 13. That the Government of the Philippine Islands, subject to the provisions of this Act and except as herein provided, shall classify according to its agricultural character and productiveness, and shall immediately make rules and regulations for the lease, sale, or other

disposition of the public lands other than timber or mineral lands, but such rules and regulations shall not go into effect or have the force of law until they have received the approval of the President, and when approved by the President they shall be submitted by him to Congress at the beginning of the next ensuing session thereof and unless disapproved or amended by Congress at said session they shall at the close of such period have the force and effect of law in the Philippine Islands: Provided, that a single homestead entry shall not exceed sixteen hectares in extent.

Section 14. That the Government of the Philippine Islands is hereby authorised and empowered to enact rules and regulations and to prescribe terms and conditions to enable persons to perfect their title to public lands in said Islands, who, prior to the transfer of sovereignty from Spain to the United States, had fulfilled all or some of the conditions required by the Spanish laws and royal decrees of the Kingdom of Spain for the acquisition of legal title thereto, yet failed to secure conveyance of title; and the Philippine Commission is authorised to issue patents, without compensation, to any native of said Islands, conveying title to any tract of land not more than sixteen hectares in extent, which were public lands and had been actually occupied by such native or his ancestors prior to and on the thirteenth of August, eighteen hundred and ninety-eight.

Section 15. That the Government of the Philippine Islands is hereby authorised and empowered, on such terms as it may prescribe, by general legislation, to provide for the granting or sale and conveyance to actual occupants and settlers and other citizens of said Islands such parts and portions of the public domain, other than timber and mineral lands, of the United States in said Islands as it may deem wise, not exceeding sixteen hectares to any one person and for the sale and conveyance of not more than one thousand and twenty-four hectares to any corporation or association of persons: Provided, that the grant or sale of such lands, whether the purchase price be paid at once or in partial payments, shall be conditioned upon actual and continued occupancy, improvement, and cultivation of the premises sold for a period of not less than five years, during which time the purchaser or grantee can not alienate or encumber said land or the title thereto; but such restriction shall not apply to transfers of rights and title of inheritance under the laws for the distribution of the estates of decedents.

Section 16. That in granting or selling any part of the public domain under the provisions of the last preceding section, preference in all cases shall be given to actual occupants and settlers; and such public lands of the United States in the actual possession or occupancy of any native of the Philippine Islands shall not be sold by said Government to any other person without the consent thereto of said prior occupant or settler first had and obtained: Provided, that the prior right hereby secured to an occupant of land, who can show no other proof of title than possession, shall not apply to more than sixteen hectares in any one tract.

Section 17. That timber, trees, forests, and forest products on lands leased or demised by the Government of the Philippine Islands under the provisions of this Act shall not be cut, destroyed, removed, or appropriated except by special permission of said Government and under such regulations as it may prescribe.

All moneys obtained from lease or sale of any portion of the public domain or from licenses to cut timber by the Government of the Philippine Islands shall be covered into the Insular Treasury and be subject only to appropriation for insular purposes according to law.

Section 18. That the forest laws and regulations now in force in the Philippine Islands, with such modifications and amendments as may be made by the Government of said Islands, are hereby continued in force, and no timber lands forming part of the public domain shall be sold, leased, or entered until the Government of said Islands, upon the certification of the Forestry Bureau that said lands are more valuable for agriculture than for forest uses, shall declare such lands so certified to be agricultural in character: Provided, that the said Government shall have the right and is hereby empowered to issue licenses to cut, harvest, or collect timber or other forest products on reserved or unreserved public lands in said Islands in accordance with the forest laws and regulations hereinbefore mentioned and under the provisions of this Act, and the said Government may lease land to any person or persons holding such licenses, sufficient for a mill site, not to exceed four hectares in extent, and may grant rights of way to enable such person or persons to get access to the lands to which such licenses apply.

Section 19. That the beneficial use shall be the basis, the measure, and the limit of all rights to water in said Islands, and the Government of said Islands is hereby authorised to make such rules and regulations for the use of water, and to make such reservations of public lands for the protection of the water supply, and for other public purposes not in conflict with the provisions of this Act, as it may deem best for the public good.

Section 20. That in all cases public lands in the Philippine Islands valuable for minerals shall be reserved from sale, except as otherwise expressly directed by law.

Section 21. That all valuable mineral deposits in public lands in the Philippine Islands, both surveyed and unsurveyed, are hereby declared to be free and open to exploration, occupation, and purchase, and the land in which they are found to occupation and purchase, by citizens of the United States, or of said Islands: Provided, that when on any lands in said Islands entered and occupied as agricultural lands under the provisions of this Act, but not patented, mineral deposits have been found, the working of such mineral deposits is hereby forbidden until the person, association, or corporation who or which has entered and is occupying such lands shall have paid to the Government of said Islands such additional sum or sums as will make the total amount paid for the mineral claim or claims in which said deposits are located equal to the amount charged by the Government for the same as mineral claims.

Section 22. That mining claims upon land containing veins or lodes of quartz or other rock in place bearing gold, silver, cinnabar, lead, tin, copper, or other valuable deposits, located after the passage of this Act, whether located by one or more persons qualified to locate the same under the preceding section, shall be located in the following manner and under the following conditions: Any person so qualified desiring to locate a mineral claim shall, subject to the provisions of this Act with respect to land which may be used for mining, enter upon the same and locate a plot of ground measuring, where possible, but not exceeding, one thousand feet in

length by one thousand feet in breadth, in as nearly as possible a rectangular form; that is to say: All angles shall be right angles, except in cases where a boundary line of a previously surveyed claim is adopted as common to both claims, but the lines need not necessarily be meridional. In defining the size of a mineral claim, it shall be measured horizontally, irrespective of inequalities of the surface of the ground.

Section 23. That a mineral claim shall be marked by two posts placed as nearly as possible on the line of the ledge or vein, and the posts shall be numbered one and two, and the distance between posts numbered one and two shall not exceed one thousand feet, the line between posts numbered one and two to be known as the location line; and upon posts numbered one and two shall be written the name given to the mineral claim, the name of the locator, and the date of the location. Upon post numbered one there shall be written, in addition to the foregoing, "Initial post," the approximate compass bearing of post numbered two, and a statement of the number of feet lying to the right and to the left of the line from post numbered one to post numbered two, thus: "Initial post Direction of post numbered two _____ feet of this claim lie on the right and _____ feet on the left of the line from number one to number two post." All the particulars required to be put on number one and number two posts shall be furnished by the locator to the provincial secretary, or such other officer as by the Philippine Government may be described as mining recorder, in writing, at the time the claim is recorded, and shall form a part of the record of the sum claim.

Section 24. That when a claim has been located the holder shall immediately mark the line between posts numbered one and two so that it can be distinctly seen. The locator shall also place a post at the point where he has found minerals in place, on which shall be written "Discovery post:" Provided, that when the claim is surveyed the surveyor shall be guided by the records of the claim, the sketch plan on the back of the declaration made by the owner when the claim was recorded, posts numbered one and two, and the notice on number one, initial post.

Section 25. That it shall not be lawful to move number one post, but number two post may be moved by the deputy mineral surveyor when the distance between posts numbered one and two exceeds one thousand feet, in order to place number two post one thousand feet from number one post on the line of location. When the distance between posts numbered one and two is less than one thousand feet the deputy mineral surveyor shall have no authority to extend the claim beyond number two.

Section 26. That the "location line" shall govern the direction of one side of the claim, upon which the survey shall be extended according to this Act.

Section 27. That the holder of a mineral claim shall be entitled to all minerals which may lie within his claim, but he shall not be entitled to mine outside the boundary lines of his claim continued vertically downward: Provided, that this Act shall not prejudice the rights of claim owners nor claim holders whose claims have been located under existing laws prior to this Act.

Section 28. That no mineral claim of the full size shall be recorded without the application being accompanied by an affidavit made by the applicant or some person on his behalf cognisant of the

facts – that the legal notices and posts have been put up; that mineral has been found in place on the claim proposed to be recorded; that the ground applied for is unoccupied by any other person. In the said declaration shall be set out the name of the applicant and the date of the location of the claim. The words written on the number one and number two posts shall be set out in full, and as accurate a description as possible of the position of the claim given with reference to some natural object or permanent monuments.

Section 29. That no mineral claim which at the date of its record is known by the locator to be less than a full-sized mineral claim shall be recorded without the word “fraction” being added to the name of the claim, and the application being accompanied by an affidavit or solemn declaration made by applicant or some person on his behalf cognisant of the facts: That the legal posts and notices have been put up; that mineral has been found in place on the fractional claim proposed to be recorded; that the ground applied for is unoccupied by any other person. In the said declaration shall be set out the name of the applicant and the date of the location of the claim. The words written on the posts numbered one and two shall be set out in full, and as accurate a description as possible of the position of the claim given. A sketch plan shall be drawn by the applicant on the back of the declaration, showing as near as may be the position of the adjoining mineral claims and the shape and size, expressed in feet, of the claim or fraction desired to be recorded: Provided, that the failure on the part of the locator of a mineral claim to comply with any of the foregoing provisions of this section shall not be deemed to invalidate such location, if upon the facts it shall appear that such locator has actually discovered mineral in place on said location, and that there has been on his part a bona fide attempt to comply with the provisions of this Act, and that the non-observance of the formalities hereinbefore referred to is not of a character calculated to mislead other persons desiring to locate claims in the vicinity.

Section 30. That in cases where, from the nature or shape of the ground, it is impossible to mark the location line of the claim as provided by this Act, then the claim may be marked by placing posts as nearly as possible to the location line, and noting the distance and direction such posts may be from such location line, which distance and direction shall be set out in the record of the claim.

Section 31. That every person locating a mineral claim shall record the same with the provincial secretary or such other officer as by the Government of the Philippine Islands may be described as mining recorder of the district within which the same is situated, within thirty days after the location thereof. Such record shall be made in a book to be kept for the purpose in the office of the said provincial secretary or such other officer as by said Government described as mining recorder, in which shall be inserted the name of the claim, the name of each locator, the locality of the mine, the direction of the location line, the length in feet, the date of location, and the date of the record. A claim which shall not have been recorded within the prescribed period shall be deemed to have been abandoned.

Section 32. That in case of any dispute as to the location of a mineral claim the title to the claim shall be recognised according to the priority of such location, subject to any question as to the

validity of the record itself and subject to the holder having complied with all the terms and conditions of this Act.

Section 33. That no holder shall be entitled to hold in his, its or their own name or in the name of any other person, corporation or association more than one mineral claim on the same vein or lode.

Section 34. That a holder may at any time abandon any mineral claim by giving notice, in writing, or such intention to abandon, to the provincial secretary or such other officer as by the Government of the Philippine Islands may be described as mining recorder; and from the date of the record of such notice all his interest in such claim shall cease.

Section 35. That proof of citizenship under the clauses of this Act relating to mineral lands may consist in the case of an individual, of his own affidavit thereof; in the case of an association of persons unincorporated, of the affidavit of their authorised agent made on his own knowledge or upon information and belief, and in case of a corporation organised under the laws of the United States, or of any State or Territory thereof, or of the Philippine Islands, by the filing of a certified copy of their charter or certificate of incorporation.

Section 36. That the United States Philippine Commission or its successors may make regulations, not in conflict with the provision of this Act, governing the location, manner of recording, and amount of work necessary to hold possession of a mining claim, subject to the following requirements:

On each claim located after the passage of this Act, and until a patent has been issued therefore, not less than one hundred dollars' worth of labour shall be performed or improvements made during each year: Provided, that upon a failure to comply with these conditions the claim or mine upon which such failure occurred shall be open to relocation in the same manner as if no location of the same had ever been made, provided that the original locators, their heirs, assigns, or legal representatives have not resumed work upon the claim after failure and before such location. Upon the failure of any one of several co-owners to contribute his proportion of the expenditures required thereby, the co-owners who have performed the labour or made the improvements may, at the expiration of the year, give such delinquent co-owner personal notice in writing or notice by publication in the newspaper published nearest the claim, and in two newspapers published at Manila, one in the English language and the other in the Spanish language, to be designated by the Chief of the Philippine Insular Bureau of Public Lands, for at least once a week for ninety days, and, if at the expiration of ninety days after such notice in writing or by publication such delinquent shall fail or refuse to contribute his proportion of the expenditure required by this section his interest in the claim shall become the property of his co-owners who have made the required expenditures. The period within which the work required to be done annually on all unpatented mineral claims shall commence on the first day of January succeeding the date of location of such claim.

Section 37. That a patent for any land claimed and located for valuable mineral deposits may be obtained in the following manner: Any person, association, or corporation authorised to locate a

claim under this Act, having claimed and located a piece of land for such purposes, who has or have complied with the terms of this Act may file in the office of the provincial secretary, or such other officer as by the Government of said Islands may be described as mining recorder of the province wherein the land claimed is located, an application for a patent, under oath showing such compliance, together with a plat and field notes of the claim or claims in common, made by or under the direction of the Chief of the Philippine Insular Bureau of Public Lands, showing accurately the boundaries of the claim, which shall be distinctly marked by monuments on the ground, and shall post a copy of such plat, together with a notice of such application for a patent, in a conspicuous place on the land embraced in such plat previous to the filing of the application for a patent, and shall file an affidavit of at least two persons that such notice has been duly posted, and shall file a copy of the notice in such office, and shall thereupon be entitled to a patent for the land, in the manner following: The provincial secretary, or such other officer as by the Philippine Government may be described as mining recorder, upon the filing of such application, plat, field notes, notices, and affidavits, shall publish a notice that such an application has been made, once a week for the period of sixty days, in a newspaper to be by him designated as nearest to such claim and in two newspapers published at Manila, one in the English language and one in the Spanish language, to be designated by the Chief of the Philippine Insular Bureau of Public Lands; and he shall also post such notice in his office for the same period. The claimant at the time of filing this application, or at any time thereafter within the sixty days of publication, shall file with the provincial secretary or such other officer as by the Philippine Government may be described as mining recorder a certificate of the Chief of the Philippine Insular Bureau of Public Lands that five hundred dollars' worth of labour has been expended or improvements made upon the claim by himself or grantors; that the plat is correct, with such further description by such reference to natural objects or permanent monuments as shall identify the claim, and furnish an accurate description to be incorporated in the patent. At the expiration of the sixty days of publication the claimant shall file his affidavit, showing that the plat and notice have been posted in a conspicuous place on the claim during such period of publication. If no adverse claim shall have been filed with the provincial secretary or such other officer as by the Government of said Islands may be described as mining recorder at the expiration of the sixty days of publication, it shall be assumed that the applicant is entitled to a patent upon the payment to the provincial treasurer or the collector of internal revenue of five dollars per acre and that no adverse claim exists, and thereafter no objection from third parties to the issuance of a patent shall be heard, except it be shown that the applicant has failed to comply with the terms of this Act: Provided, that where the claimant for a patent is not a resident of or within the province wherein the land containing the vein, ledge, or deposit sought to be patented is located, the application for patent and the affidavits required to be made in this section by the claimant for such patent may be made by his, her, or its authorised agent where said agent is conversant with the facts sought to be established by said affidavits.

Section 38. That applicants for mineral patents, if residing beyond the limits of the province or military department wherein the claim is situated, may make the oath or affidavit required for proof of citizenship before the clerk of any court of record, or before any notary public of any

province of the Philippine Islands, or any other official in said Islands authorised by law to administer oaths.

Section 39. That where an adverse claim is filed during the period of publication it shall be upon oath of the person or persons making the same, and shall show the nature, boundaries, and extent of such adverse claim, and all proceedings, except the publication of notice and making and filing of the affidavits thereof, shall be stayed until the controversy shall have been settled or decided by a court of competent jurisdiction or the adverse claim waived. It shall be the duty of the adverse claimant, within thirty days after filing his claim, to commence proceedings in a court of competent jurisdiction to determine the question of the right of possession, and prosecute the same with reasonable diligence to final judgment, and a failure so to do shall be a waiver of his adverse claim. After such judgment shall have been rendered the party entitled to the possession of the claim, or any portion thereof, may, without giving further notice, file a certified copy of the judgment roll with the provincial secretary or such other officer as by the Government of the Philippine Islands may be described as mining recorder, together with the certificate of the Chief of the Philippine Insular Bureau of Public Lands that the requisite amount of labour has been expended or improvements made thereon, and the description required in other cases, and shall pay to the provincial treasurer or the collector of internal revenue of the province in which the claim is situated, as the case may be, five dollars per acre for his claim, together with the proper fees, whereupon the whole proceedings and the judgment roll shall be certified by the provincial secretary or such other officer as by said Government may be described as mining recorder to the Secretary of the Interior of the Philippine Islands, and a patent shall issue thereon for the claim, or such portion thereof as the applicant shall appear, from the decision of the court, rightly to possess. The adverse claim may be verified by the oath of any duly authorised agent or attorney in fact of the adverse claimant cognisant of the facts stated; and the adverse claimant, if residing or at the time being beyond the limits of the province wherein the claim is situated, may make oath to the adverse claim before the clerk of any court of record, or any notary public of any province or military department of the Philippine Islands, or any other officer authorised to administer oaths where the adverse claimant may then be. If it appears from the decision of the court that several parties are entitled to separate and different portions of the claim, each party may pay for his portion of the claim, with the proper fees, and file the certificate and description by the Chief of the Philippine Insular Bureau of Public Lands, whereupon the provincial secretary or such other officer as by the Government of said Islands may be described as mining recorder shall certify the proceedings and judgment roll to the Secretary of the Interior for the Philippine Islands, as in the preceding case, and patents shall issue to the several parties according to their respective rights. If in any action brought pursuant to this section, title to the ground in controversy shall not be established by either party, the court shall so find, and judgment shall be entered accordingly. In such case costs shall not be allowed to either party, and the claimant shall proceed in the office of the provincial secretary or such other officer as by the Government of said Islands may be described as mining recorder or be entitled to a patent for the ground in controversy until he shall have perfected his title. Nothing herein contained shall be construed to prevent the alienation of a title conveyed by a patent for a mining claim to any person whatever.

Section 40. That the description of mineral claims upon surveyed lands shall designate the location of the claim with reference to the lines of the public surveys, but need not conform therewith; but where a patent shall be issued for claims upon unsurveyed lands, the Chief of the Philippine Insular Bureau of Public Lands in extending the surveys shall adjust the same to the boundaries of such patented claim according to the plat or description thereof, but so as in no case to interfere with or change the location of any patented claim.

Section 41. That any person authorised to enter lands under this Act may enter and obtain patent to lands that are chiefly valuable for building stone under the provisions of this Act relative to placer mineral claims.

Section 42. That any person authorised to enter lands under this Act may enter and obtain patent to lands containing petroleum or other mineral oils and chiefly valuable therefore under the provisions of this Act relative to parcel mineral claims.

Section 43. That no location of a placer claim shall exceed sixty-four hectares for any association of persons, irrespective of the number of persons composing such association, and no such location shall include more than eight hectares for an individual claimant. Such locations shall conform to the laws of the United States Philippine Commission, or its successors, with reference to public surveys, and nothing in this section contained shall defeat or impair any bona fide ownership of land for agricultural purposes or authorise the sale of the improvements of any bona fide settler to any purchase.

Section 44. That where placer claims are located upon surveyed lands and conform to legal subdivisions, further survey or plat shall be required, and all placer mining claims located after the date of passage of this Act shall conform as nearly as practicable to the Philippine system of public-land surveys and the regular subdivision of such surveys; but where placer claims can not be conformed to legal subdivisions, survey and plat shall be made as on nsurveyed lands; and where by the segregation of mineral lands in any legal subdivision a quantity of agricultural land less than sixteen hectares shall remain, such fractional portion of agricultural land may be entered by any party qualified by law for homestead purposes.

Section 45. That where such person or association, they and their grantors have held and worked their claims for a period equal to the time prescribed by the statute of limitations of the Philippine Islands, evidence of such possession and working of the claims for such period shall be sufficient to establish a right to a patent thereto under this Act, in the absence of any adverse claim; but nothing in this Act shall be deemed to impair any lien which may have attached in any way whatever prior to the issuance of a patent.

Section 46. That the Chief of the Philippine Insular Bureau of Public Lands may appoint competent deputy mineral surveyors to survey mining claims. The expenses of the survey of vein or lode claims and of the survey of placer claims, together with the cost of publication of notices, shall be paid by the applicants, and they shall be at liberty to obtain the same at the most reasonable rates, and they shall also be at liberty to employ any such deputy mineral surveyor to make the survey. The Chief of the Philippine Insular Bureau of Public Lands shall also have

power to establish the maximum charges for surveys and publication of notices under this Act; and in case of excessive charges for publication he may designate any newspaper published in a province where mines are situated, or in Manila, for the publication of mining notices and fix the rates to be charged by such paper; and to the end that the Chief of the Bureau of Public Lands may be fully informed on the subject such applicant shall file with the provincial secretary, or such other officer as by the Government of the Philippine Islands may be described as mining recorder, a sworn statement of all charges and fees paid by such applicant for publication and surveys, and of all fees and money paid the provincial treasurer or the collector of internal revenue, as the case may be, which statement shall be transmitted, with the other papers in the case, to the Secretary of the Interior for the Philippine Islands.

Section 47. That all affidavits required to be made under this Act may be verified before any officer authorised to administer oaths within the province or military department where the claims may be situated, and all testimony and proofs may be taken before any such officer, and, when duly certified by the officer taking the same, shall have the same force and effect as if taken before the proper provincial secretary or such other officer as by the Government of the Philippine Islands may be described as mining recorder. In cases of contest as to the mineral or agricultural character of land the testimony and proofs may be taken as herein provided on personal notice of at least ten days to the opposing party; or if such party can not be found, then by publication at least once a week for thirty days in a newspaper to be designated by the provincial secretary or such other officer as by said Government may be described as mining recorder published nearest to the location of such land and in two newspapers published in Manila, one in the English language and one in the Spanish language, to be designated by the Chief of the Philippine Insular Bureau of Public Lands; and the provincial secretary or such other officer as by said Government may be described as mining recorder shall require proofs that such notice has been given.

Section 48. That where non-mineral land not contiguous to the vein or lode is used or occupied by the proprietor of such vein or lode for mining or milling purposes, such nonadjacent surface ground may be embraced and included in an application for a patent for such vein or lode, and the same may be patented therewith, subject to the same preliminary requirements as to survey and notice as are applicable to veins or lodes; but no location of such nonadjacent land shall exceed two hectares, and payment for the same must be made at the same rate as fixed by this Act for the superficies of the lode. The owner of a quarts mill or reduction works not owning a mine in connection therewith may also receive a patent for his mill site as provided in this section.

Section 49. That as a condition of sale the Government of the Philippine Islands may provide rules for working, policing, and sanitation of mines, and rules concerning easements, drainage, water rights, right of way, right of Government survey and inspection, and other necessary means to their complete development not inconsistent with the provisions of this Act, and those conditions shall be fully expressed in the patent. The Philippine Commission or its successors are hereby further empowered to fix the bonds of deputy mineral surveyors.

Section 50. That whenever by priority of possession rights to the use of water for mining, agricultural, manufacturing, or other purposes have vested and accrued and the same are recognised and acknowledged by the local customs, laws, and the decisions of courts, the possessors and owners of such vested rights shall be maintained and protected in the same, and the right of way for the construction of ditches and canals for the purposes herein specified is acknowledged and confirmed, but whenever any person, in the construction of any ditch or canal, injures or damages the possession of any settler on the public domain, the party committing such injury or damage shall be liable to the party injured for such injury or damage.

Section 51. That all patents granted shall be subject to any vested and accrued water rights, or rights to ditches and reservoirs used in connection with such water rights as may have been acquired under or recognised by the preceding section.

Section 52. That the Government of the Philippine Islands is authorised to establish land districts and provide for the appointment of the necessary officers wherever they may deem the same necessary for the public convenience, and to further provide that in districts where land offices are established proceedings required by this Act to be had before provincial officers shall be had before the proper officers of such land offices.

Section 53. That every person above the age of twenty-one years, who is a citizen of the United States, or of the Philippine Islands, or who has acquired the rights of a native of said Islands under and by virtue of the treaty of Paris, or any association of persons severally qualified as above, shall, upon application to the proper provincial treasurer, have the right to enter any quality of vacant coal lands of said Islands not otherwise appropriated or reserved by competent authority, not exceeding sixty-four hectares to such individual person, or one hundred and twenty-eight hectares to such association, upon payment to the provincial treasurer or the collector of internal revenue, as the case may be, of not less than twenty-five dollars per hectare for such lands, where the same shall be situated more than fifteen miles from any completed railroad or available harbour or navigable stream, and not less than fifty dollars per hectare for such lands as shall be within fifteen miles of such road, harbour, or stream: Provided, that such entries shall be taken in squares of sixteen or sixty-four hectares, in conformity with the rules and regulations governing the public-land surveys of the said Islands in plotting legal subdivisions.

Section 54. That any person or association of persons, severally qualified as above provided, who have opened and improved, or shall hereafter open and improve, any coal mine or mines upon the public lands, and shall be in actual possession of the same, shall be entitled to a preference right of entry under the preceding section of the mines so opened and improved.

Section 55. That all claims under the preceding section must be presented to the proper provincial secretary within sixty days after the date of actual possession and the commencement of improvements on the land by the filing of a declaratory statement therefore; and where the improvements shall have been made prior to the expiration of three months from the date of the passage of this Act, sixty days from the expiration of such three months shall be allowed for the

filing of a declaratory statement; and no sale under the provisions of this Act shall be allowed until the expiration of six months from the date of the passage of this Act.

Section 56. That the three preceding sections shall be held to authorise only one entry by the same person or association of persons; and no association of persons, any member of which shall have taken the benefit of such sections, either as an individual or as a member of any other association, shall enter or hold any other lands under the provisions thereof; and no member of any association which shall have taken the benefit of such section shall enter or hold any other lands under their provisions; and all persons claiming under section fifty-eight shall be required to prove their respective rights and pay for the lands filed upon within one year from the time prescribed for filing their respective claims; and upon failure to file the proper notice or to pay for the land within the required period, the same shall be subject to entry by any other qualified applicant.

Section 57. That in case of conflicting claims upon coal lands where the improvements shall be commenced after the date of the passage of this Act, priority of possession and improvement, followed by proper filing and continued good faith, shall determine the preference right to purchase. And also where improvements have already been made prior to the passage of this Act, division of the land claimed may be made by legal subdivisions, which shall conform as nearly as practicable with the subdivisions of land provided for in this Act, to include as near as may be the valuable improvements of the respective parties. The Government of the Philippine Islands is authorised to issue all needful rules and regulations for carrying into effect the provisions of this and preceding sections relating to mineral lands.

Section 58. That whenever it shall be made to appear to the secretary of any province or the commander of any military department in the Philippine Islands that any lands within the province are saline in character, it shall be the duty of said provincial secretary or commander, under the regulations of the Government of the Philippine Islands, to take testimony in reference to such lands, to ascertain their true character, and to report the same to the Secretary of the Interior for the Philippine Islands; and if, upon such testimony, the Secretary of the Interior shall find that such lands are saline and incapable of being purchased under any of the laws relative to the public domain, then and in such case said lands shall be offered for sale at the office of the provincial secretary or such other officer as by the said Government may be described as mining recorder of the province or department in which the same shall be situated, as the case may be, under such regulations as may be prescribed by said Government and sold to the highest bidder, for cash, at a price of not less than three dollars per hectare; and in case such lands fail to sell when so offered, then the same shall be subject to private sale at such office, for cash, at a price not less than three dollars per hectare, in the same manner as other lands in the said Islands are sold. All executive proclamations relating to the sales of public saline lands shall be published in only two newspapers, one printed in the English language and one in the Spanish language, at Manila, which shall be designated by said Secretary of the Interior.

Section 59. That no Act granting lands to provinces, districts, or municipalities to aid in the construction of roads, or for other public purposes, shall be so construed as to embrace mineral

lands, which, in all cases, are reserved exclusively, unless otherwise specially provided in the Act or Acts making the grant.

Section 60. That nothing in this Act shall be construed to affect the rights of any person, partnership, or corporation having a valid, perfected mining concession granted prior to April eleventh, eighteen hundred and ninety-nine, but all such concessions shall be conducted under the provisions of the law in force at the time they were granted, subject at all times to cancellation by reason of illegality in the procedure by which they were obtained, or for failure to comply with the conditions prescribed as requisite to their retention in the laws under which they were granted: Provided, that the owner or owners of every such concession shall cause the corners made by its boundaries to be distinctly marked with permanent monuments within six months after this Act has been promulgated in the Philippine Islands, and that any concessions the boundaries of which are not so marked within this period shall be free and open to exploration and purchase under the provisions of this Act.

Section 61. That mining rights on public lands in the Philippine Islands shall, after the passage of this Act, be acquired only in accordance with its provisions.

Section 62. That all proceedings for the cancellation of perfected Spanish concessions shall be conducted in the courts of the Philippine Islands having jurisdiction of the subject-matter and of the parties, unless the United States Philippine Commission, or its successors, shall create special tribunals for the determination of such controversies.

Authority for the Philippine Islands Government to Purchase Lands of Religious Orders and Others and Issue Bonds for Purchase Price

Section 63. That the Government of the Philippine Islands is hereby authorised, subject to the limitations and conditions prescribed in this Act, to acquire, receive, hold, maintain, and convey title to real and personal property, and may acquire real estate for public uses by the exercise of the right of eminent domain.

Section 64. That the powers hereinbefore conferred in section sixty-three may also be exercised in respect of any lands, easements, appurtenances, and hereditaments which, on the thirteenth of August, eighteen hundred and ninety-eight, were owned or held by associations, corporations, communities, religious orders, or private individuals in such large tracts or parcels and in such manner as in the opinion of the Commission injuriously to affect the peace and welfare of the people of the Philippine Islands. And for the purpose of providing funds to acquire the lands mentioned in this section said Government of the Philippine Islands is hereby empowered to incur indebtedness, to borrow money, and to issue, and to sell at not less than par value, in gold coin of the United States of the present standard value or the equivalent in value in money of said Islands, upon such terms and conditions as it may deem best, registered or coupon bonds of said Government for such amount as may be necessary, said bonds to be in denominations of fifty dollars or any multiple thereof, bearing interest at a rate not exceeding four and a half per centum per annum, payable quarterly, and to be payable at the pleasure of said Government after dates named in said bonds not less than five nor more than thirty years from the date of their issue,

together with interest thereon, in gold coin of the United States of the present standard value or the equivalent in value in money of said Islands; and said bonds shall be exempt from the payment of all taxes or duties of said Government, or any local authority therein, or of the Government of the United States, as well as from taxation in any form by or under State, municipal, or local authority in the United States or the Philippine Islands. The moneys which may be realised or received from the issue and sale of said bonds shall be applied by the Government of the Philippine Islands to the acquisition of the property authorised by this section, and to no other purposes.

Section 65. That all lands acquired by virtue of the preceding section shall constitute a part and portion of the public property of the Government of the Philippine Islands, and may be held, sold, and conveyed, or leased temporarily for a period not exceeding three years after their acquisition by said Government on such terms and conditions as it may prescribe, subject to the limitations and conditions provided for in this Act: Provided, that all deferred payments and the interest thereon shall be payable in the money prescribed for the payment of principal and interest of the bonds authorised to be issued in payment of said lands by the preceding section and said deferred payments shall bear interest at the rate borne by the bonds. All moneys realised or received from sales or other disposition of said lands or by reason thereof shall constitute a trust fund for the payment of principal and interest of said bonds, and also constitute a sinking fund for the payment of said bonds at their maturity. Actual settlers and occupants at the time said lands are acquired by the Government shall have the preference over all others to lease, purchase, or acquire their holdings within such reasonable time as may be determined by said Government.

Municipal Bonds for Public Improvements

Section 66. That for the purpose of providing funds to construct sewers, to furnish adequate sewer and drainage facilities, to secure a sufficient supply of water, and to provide all kinds of municipal betterments and improvements in municipalities, the Government of the Philippine Islands, under such limitations, terms, and conditions as it may prescribe, with the consent and approval of the President and the Congress of the United States, may permit any municipality of said Islands to incur indebtedness, borrow money, and to issue and sell (at not less than par value in gold coin of the United States) registered or coupon bonds in such amount and payable at such time as may be determined by the Government of said Islands, with interest thereon not to exceed five per centum per annum: Provided, that the entire indebtedness of any municipality under this section shall not exceed five per centum of the assessed valuation of the property in said municipality and any obligation in excess of such limit shall be null and void.

Section 67. That all municipal bonds shall be in denominations of fifty dollars, or any multiple thereof, bearing interest at a rate not exceeding five per centum per annum, payable quarterly, such bonds to be payable at the pleasure of the Government of the Philippine Islands, after dates named in said bonds not less than five nor more than thirty years from the date of their issue, together with the interest thereon, in gold coin of the United States of the present standard of value, or its equivalent in value in money of the said Islands: and said bonds shall be exempt

from the payment of all taxes or duties of the Government of the Philippine Islands, or any local authority therein, or the Government of the United States.

Section 68. That all moneys which may be realised or received from the issue and sale of said bonds shall be utilised under authorisation of the Government of the Philippine Islands in providing the municipal improvements and betterment which induced the issue and sale of said bonds, and for no other purpose.

Section 69. That the Government of the Philippine Islands shall, by the levy and collection of taxes on the municipality, its inhabitants and their property, or by other means, make adequate provision to meet the obligation of the bonds of such municipality, and shall create a sinking fund sufficient to retire them and pay the interest thereon in accordance with the terms of issue: Provided, that if said bonds or any portion thereof shall be paid out of the funds of the Government of said Islands, such municipality shall reimburse said Government for the sum thus paid, and said Government is hereby empowered to collect said sum by the levy and collection of taxes on such municipality.

Section 70. That for the purpose of providing funds to construct sewers in the city of Manila and to furnish it with an adequate sewer and drainage system and supply of water the Government of the Philippine Islands, with the approval of the President of the United States first had, is hereby authorised to permit the city of Manila to incur indebtedness, to borrow money, and to issue and sell (at not less than par value in gold coin of the United States), upon such terms and conditions as it may deem best, registered or coupon bonds of the city of Manila to an amount not exceeding four million dollars, lawful money of the United States, payable at such time or times as may be determined by said Government, with interest thereon not to exceed five per centum per annum.

Section 71. That said coupon or registered bonds shall be in denominations of fifty dollars or any multiple thereof, bearing interest at a rate not exceeding five per centum per annum, payable quarterly, such bonds to be payable at the pleasure of the Government of the Philippine Islands, after dates named in said bonds not less than five nor more than thirty years from the date of their issue, together with the interest thereon in gold coin of the United States of the present standard value, or the equivalent in value in money of the said Islands; and said bonds shall be exempt from the payment of all taxes or duties of the Government of the said Islands, or of any local authority therein, or of the Government of the United States.

Section 72. That all moneys which may be realised or received from the issue and sale of said bonds shall be utilised under authorisation of said Government of the Philippine Islands in providing a suitable sewer and drainage system and adequate supply of water for the city of Manila and for no other purpose.

Section 73. That the Government of the Philippine Islands shall, by the levy and collection of taxes on the city of Manila, its inhabitants and their property, or by other means, make adequate provision to meet the obligation of said bonds and shall create a sinking fund sufficient to retire them and pay the interest thereon in accordance with the terms of issue: Provided, that if said

bonds or any portion thereof shall be paid out of the funds of the Government of said Islands, said city shall reimburse said Government for the sum thus paid, and said Government is hereby empowered to collect said sum by the levy and collection of taxes on said city.

Franchises

Section 74. That the Government of the Philippine Islands may grant franchises; privileges, and concessions, including the authority to exercise the right of eminent domain for the construction and operation of works of public utility and service, and may authorise said works to be constructed and maintained over and across the public property of the United States, including streets, highways, squares, and reservations, and over similar property of the Government of said Islands, and may adopt rules and regulations under which the provincial and municipal governments of the Islands may grant the right to use and occupy such public property belonging to said provinces or municipalities: Provided, that no private property shall be taken for any purpose under this section without just compensation paid or tendered therefore, and that such authority to take and occupy land shall not authorise the taking, use, or occupation of any land except such as is required for the actual necessary purposes for which the franchise is granted, and that no franchise, privilege, or concession shall be granted to any corporation except under the conditions that it shall be subject to amendment, alteration, or repeal by the Congress of the United States, and that lands or rights of use and occupation of lands thus granted shall revert to the Governments by which they were respectively granted upon the termination of the franchises and concession under which they were granted or upon their revocation or repeal. That all franchises, privileges, or concessions granted under this Act shall forbid the issue of stock or bonds except in exchange for actual cash, or for property at a fair valuation, equal to the par value of the stock or bonds so issued; shall forbid the declaring of stock or bond dividends, and, in the case of public-service corporations, shall provide for the effective regulation of the charges thereof, for the official inspection and regulation of the books and accounts of such corporations, and for the payment of a reasonable percentage of gross earnings into the Treasury of the Philippine Islands or of the province or municipality within which such franchises are granted and exercised: Provided further, that it shall be unlawful for any corporation organised under this Act, or for any person, company, or corporation receiving any grant, franchise, or concession from the Government of said Islands, to use, employ, or contract for the labour of persons claimed or alleged to be held in involuntary servitude; and any person, company, or corporation so violating the provisions of this Act shall forfeit all charters, grants, franchises, and concessions for doing business in said Islands, and in addition shall be deemed guilty of an offence, and shall be punished by a fine of not less than ten thousand dollars.

Section 75. That no corporation shall be authorised to conduct the business of buying and selling real estate or be permitted to hold or own real estate except such as may be reasonably necessary to enable it to carry out the purposes for which it is created, and every corporation authorised to engage in agriculture shall by its charter be restricted to the ownership and control of not to exceed one thousand and twenty-four hectares of land; and it shall be unlawful for any member of a corporation engaged in agriculture or mining and for any corporation organised for any purpose except irrigation to be in any wise interested in any other corporation engaged in

agriculture or in mining. Corporations, however, may loan funds upon real-estate security and purchase real estate when necessary for the collection of loans, but they shall dispose of real state so obtained within five years after receiving the title. Corporations not organised in the Philippine Islands, and doing business therein shall be bound by the provisions of this section so far as they are applicable.

Coinage

Section 76. That the Government of the Philippine Islands is hereby authorised to establish a mint at the city of Manila, in said Islands, for coinage purposes, and the coins hereinafter authorised may be coined at said mint. And the said Government is hereby authorised to enact laws necessary for such establishment: Provided, that the laws of the United States relating to mints and coinage, so far as applicable, are hereby extended to the coinage of said Islands.

Section 77. That the Government of the Philippine Islands is authorised to coin, for use in said Islands, a coin of the denomination of fifty centavos and of the weight of one hundred and ninety-two and nine-tenths grains, a coin of the denomination of twenty centavos and of the weight of seventy-seven and sixteen one-hundredths grains, and a coin of the denomination of ten centavos and of the weight of thirty-eight and fifty-eight one-hundredths grains, and the standards of said silver coins shall be such that of one thousand parts by weight nine hundred shall be of pure metal and one hundred of alloy, and the alloy shall be of copper.

Section 78. That the subsidiary silver coins authorised by the preceding section shall be coined under the authority of the Government of the Philippine Islands in such amounts as it may determine, with the approval of the Secretary of War of the United States, from silver bullion purchased by said Government, with the approval of the Secretary of War of the United States: Provided, that said Government may in addition and in its discretion recoin the Spanish-Filipino dollars and subsidiary silver coins issued under the authority of the Spanish Government for use in said Islands into the subsidiary coins provided for in the preceding section at such rate and under such regulations as it may prescribe, and the subsidiary silver coins authorised by this section shall be legal tender in said Islands to the amount of ten dollars.

Section 79. That the Government of the Philippine Islands is also authorised to issue minor coins of the denominations of one-half centavo, one centavo, and five centavos, and such minor coins shall be legal tender in said Islands for amounts not exceeding one dollar. The alloy of the five-centavo piece shall be of copper and nickel, to be composed of three fourths copper and one-fourth nickel. The alloy of the one-centavo and one-half-centavo pieces shall be ninety-five per centum of copper and five per centum of tin and zinc, in such proportions as shall be determined by said Government. The weight of the five-centavo piece shall be seventy-seven and sixteen-hundredths grains troy, and of the one-centavo piece eighty grains troy, and of the one-half centavo piece forty grains troy.

Section 80. That for the purchase of metal for the subsidiary and minor coinage, authorised by the preceding sections, an appropriation may be made by the Government of the Philippine

Islands from its current funds, which shall be reimbursed from the coinage under said sections; and the gain or seigniorage arising there from shall be paid into the Treasury of said Islands.

Section 81. That the subsidiary and minor coinage hereinbefore authorised may be coined at the mint of the Government of the Philippine Islands at Manila, or arrangements may be made by the said Government with the Secretary of the Treasury of the United States for their coinage at any of the mints of the United States, at a charge covering the reasonable cost of the work.

Section 82. That the subsidiary and minor coinage hereinbefore authorised shall bear devices and inscriptions to be prescribed by the Government of the Philippines Islands, and such devices and inscriptions shall express the sovereignty of the United States, that it is a coin of the Philippine Islands, the denomination of the coin, and the year of the coinage.

Section 83. That the Government of the Philippine Islands shall have the power to make all necessary appropriations and all proper regulations for the redemption and reissue of worn or defective coins and for carrying out all other provisions of this Act relating to coinage.

Section 84. That the laws relating to entry, clearance, and manifests of steamships and other vessels arriving from or going to foreign ports shall apply to voyages each way between the Philippine Islands and the United States and the possessions thereof, and all laws relating to the collection and protection of customs duties not inconsistent with the Act of Congress of March eighth, nineteen hundred and two, “temporarily to provide revenue for the Philippine Islands,” shall apply in the case of vessels and goods arriving from said Islands in the United States and its aforesaid possessions.

The laws relating to seamen on foreign voyages shall apply to seamen on vessels going from the United States and its possessions aforesaid to said Islands, the customs officers there being for this purpose substituted for consular officers in foreign ports.

The provisions of chapters six and seven, title forty-eight, Revised Statutes, so far as now in force, and any amendments thereof, shall apply to vessels making voyages either way between ports of the United States or its aforesaid possessions and ports in said Islands; and the provisions of law relating to the public health and quarantine shall apply in the case of all vessels entering a port of the United States or its aforesaid possessions from said Islands, where the customs officers at the port of departure shall perform the duties required by such law of consular officers in foreign ports.

Section 3005, Revised Statutes, as amended, and other existing laws concerning the transit of merchandise through the United States, shall apply to merchandise arriving at any port of the United States destined for any of its insular and continental possessions or destined from any of them to foreign countries.

Nothing in this Act shall be held to repeal or alter any part of the Act of March eighth, nineteen hundred and two, aforesaid, or to apply to Guam, Tutorial, or Mauna, except that section eight of an Act entitled “An Act to revise and amend the tariff laws of the Philippine Archipelago,”

enacted by the Philippine Commission on the seventeenth of September, nineteen hundred and one, and approved by an Act entitled “An Act temporarily to provide revenues for the Philippine Islands, and for other purposes,” approved March eighth, nineteen hundred and two, is hereby amended so as to authorise the Civil Governor thereof in his discretion to establish the equivalent rates of the money in circulation in said Islands with the money of the United States as often as once in ten days.

Section 85. That the Treasury of the Philippine Islands and such banking associations in said Islands with a paid-up capital of not less than two million dollars and chartered by the United States or any State thereof as may be designated by the Secretary of War and the Secretary of the Treasury of the United States shall be depositories of public money of the United States, subject to the provisions of existing law governing such depositories in the United States: Provided, that the Treasury of the Government of said Islands shall not be required to deposit bonds in the Treasury of the United States, or to give other specific securities for the safe-keeping of public money except as prescribed, in his discretion, by the Secretary of War.

Section 86. That all laws passed by the Government of the Philippine Islands shall be reported to Congress, which hereby reserves the power and authority to annul the same, and the Philippine Commission is hereby directed to make annual report of all its receipts and expenditures to the Secretary of War.

Bureau of Insular Affairs

Section 87. That the Division of Insular Affairs of the War Department, organised by the Secretary of War, is hereby continued until otherwise provided, and shall hereafter be known as the Bureau of Insular Affairs of the War Department. The business assigned to said Bureau shall embrace all matters pertaining to civil government in the island possessions of the United States subject to the jurisdiction of the War Department; and the Secretary of War is hereby authorised to detail an officer of the Army whom he may consider especially well qualified, to act under the authority of the Secretary of War as the chief of said Bureau, and said officer while acting under said detail shall have the rank, pay, and allowances of a colonel.

Section 88. That all Acts and parts of Acts inconsistent with this Act are hereby repealed.

EXCERPT FROM THE DIARY OF CARRIE CHAPMAN CATT.

-THE PHILIPPINES- (PART-XI)-

-JULY 19th. To AUGUST 20th. 1912-

ANNOTATION

Carrie Chapman Catt and Dr. Aletta Jacob visited Manila for a three-week visit as part of a worldwide tour. Catt, who led the National American Woman Suffrage Association (NAWSA) and founded the League of Women Voters, was supportive of the Philippine suffrage movement. They met a group of Filipino and American women at the Manila Hotel in 1912. Two of the women were Sofia de Veyra and Pura Villanueva Kalaw. Both were leaders of their respective organizations. Pura was the president of the Asociacion Femenista Ilonga and Sofia was a founding member of the Asociacion Femenista Filipina).

Eventually, the Society for the Advancement of Women (SAW) was formed with an equal number of Filipino and American founding members before Catt left the Philippines. Catt observed that SAW was the first society in which both Filipinos and Americans were united in work. SAW became the Manila Women's Club, which later became part of the National Federation of Women's Clubs. The women in these clubs campaigned tirelessly to get the 300,000 votes from Filipino women for the 1937 Amended Election Law to be passed. This paved the way for women to take up leadership roles in politics. Since then, the Philippines has witnessed the election of two female presidents, and many women have been elected or appointed to positions on a national and local government level.

Catt, Carrie Chapman Diaries, July 19-Aug. 20, 1912
Philippines

The Women of the Philippines

The arrival in Manilla of two leaders of women-Mrs. Carrie Chapman Catt of the United States and Dr. Aletta Jacobs of Holland-who come to make investigation of the condition of women in the Philippines is a really interesting event. They come at an opportune time. Social conditions and problems are uppermost in the minds of all who are working for the advancement of the Philippines and if these ladies can contribute anything of value it will be very welcome. They bring to their mission several advantages that weigh even against extended local experience. They are enthusiasts and specialists, they have been studying the affairs and problems of the women in other counters, their eyes are new and they can get contrasts denied to local students. There seems [to be] but one possible criticism of their plan and that is the time they have allotted to their work-it appears insufficient. But if they are given the maximum of assistance they can cover a great deal of ground and to that end the writer ventures the suggestion that the government, the chiefs of all local institutions of women, the officers of the local women's societies and all who are interested in their purpose join in forwarding their work. These investigators will at the very outset discover many interesting things about the women of the

Philippines. They will quickly discern that they are whole lot better than the men, an advantage by no means limited to mere morals. They excel their men in business, in energy and industry, in thrift. They do more for their homes and their families than do their men. They have caught the new spirit of progression that is abroad in the land and have a leading part in it. They are filling the schools and their attainments in scholarship equal to those of the other sex. They have taken the first steps toward the professions, notably medicine and nursing, and their work is rich in promise for the future. They have for years been leaders in the local household industries and will be an important element in the commercial life of the islands when that sphere is enlarged by the work of the schools and the special efforts that the government is now devoting to it.

Speaking in a broad and general sense the writer is inclined to believe that the rights of woman in the Philippines are fairly protected and conserved by both the laws of the land and the family and social customs that obtain. In common with her people, she needs educational, social and material advancement but she will share fully in these advantages as they come. Much is planned for her but perhaps much more can and should be done for her, and if the two investigators can be helpful their ideas and suggestions will be welcomed. The cause of suffrage, in which the two visiting ladies are especially interested, has not been advanced here and conditions would indicate that the time is not ripe. However, let not us deter; it would be diverting whether practical or not.

SUFFRAGETTES FOR ISLANDS

Manila Times, Aug 16, 1912 Mrs. Catt Organizes Local Women for Work

Manila is to have an active, fully organized woman's suffrage society club. The organization of this association was perfected yesterday at the Manila hotel by Mrs. Carrie Chapman Catt, at a meeting held with several of the more prominent American and Filipino women of the city. The association is to be known as the Society of the Advancement of Women and it has four American and four Filipino lady officials. They are: president, Mrs. C.S. Lobingier;

vice president, Senora Victorino Mapa. The minutes of the meetings are to be kept in two languages, Spanish and English. Mrs. Calderon will act as Spanish secretary and Mrs. Saleeby will be the English secretary. Mrs. Goodale is treasurer of the society and there is an advisory committee composed of the following well known ladies: Senora Teodoro Kalaw, Senorita Lopez and Mrs. Quinan. The first meeting of the society will be held on August 29th, at the home of Mrs. Logingier on Calle San Marcelino. In speaking of the society and its formation yesterday Mrs. Catt said to a TIMES man this morning: "The society will, of course take up whatever work it desires, but its first object will be to study the women's suffrage movement. The society already has quite a number of members and they are the most prominent and best women in the city. I feel sure that the organization of this society here will do an immense amount of good in more ways than one."

Asked regarding her impressions of the Philippines and the conditions here, Mrs. Catt, who leaves this evening on the Prinz Sigismund for Hongkong, said: "I feel that I have been here such

a short time that I do not fully understand conditions as I should like to and for that reason am thinking of returning again next year. Personally, I found things very interesting here. Results are being wrought out here which are going to tell for the hindrance or benefit of every Asiatic country. If the Filipinos are really benefited by the broad system of education which has been inculcated here, if they become imbued with ideas of business honesty, if they become able to handle the large commercial problems and can be trusted with the responsibilities of government, it will have an immense effect on other adjacent countries. "I have heard from several sources that candidates for political preferment in the provinces have used money and that other corrupt practices have crept in. If such bad customs are kept up, England, France, Germany and the Netherlands will point to that as the final condemnation of the Asiatic countries to govern themselves, and it is of the utmost importance that the voters of the islands be made to see that and combine in condemning such practices.

"For this reason I think it would be a wise step if the women of the country were given the right to vote for all agree that the women of the islands are more upright and honorable than the men and they would make the men be honest, too." Asked what she thought of the immediate independence idea, Mrs. Catt said: -"The people of the islands are much better off under the liberal policy of the United States than if they were given independence and all its attendant dangers. The United States hold the Philippine by as fair a title as any colonies are held by foreign

countries; they came to us by the fortunes of war and to give them up would be an act of philanthropy and independence should not be given the islands until all the people are educated and their men are more fitted to cope with the political and commercial problems which now beset the archipelago. Independence, moreover, could not be given the islands at this time unless all the nations entered into an agreement to keep hands off under all circumstances and I feel sure that the various nations would not enter into such a covenant. Personally, I should like to see the islands converted into a territory and afterwards into a state, a part of the United States. I think that would be for their best interests."

THE PHILIPPINE INDEPENDENCE ACT

(TYDINGS-MCDUFFIE ACT) 1934

AN ACT TO PROVIDE FOR THE COMPLETE INDEPENDENCE OF THE PHILIPPINE ISLANDS, TO PROVIDE FOR THE ADOPTION OF A CONSTITUTION AND A FORM OF GOVERNMENT FOR THE PHILIPPINE ISLANDS, AND FOR OTHER PURPOSES.

ANNOTATION

The Tydings-McDuffie Act known as the Philippine Independence Act of 1934 is a U.S. law that provided for Philippine independence. It is a slightly revised version of the Hare-Hawes-Cutting Bill passed by the U.S. Congress in 1933 but was vetoed by U.S. President Herbert Hoover. The U.S. Congress overrode the veto but was rejected by the Philippine Senate upon urgings of Manuel L. Quezon. Quezon wanted an amended bill. The new bill named, The Philippine Independence Act was authored by Senator Milliard Tydings (Democrat) of Maryland and Representative John McDuffie (Democrat) of Alabama. The new president, Franklin D. Roosevelt, signed it into law on March 24, 1934.

Among the significant provisions of the law are: (1) The election of the leaders of Philippine Commonwealth; (2) The recognition of Philippine independence on July 4, 1946; (3) The right of the United States to establish military bases in the country; (4) Granting the United States president the power to call on all military forces of the Philippines into service; (5) Reclassifying all Filipinos as aliens and limiting immigration to the United States to 50 persons per year. The law also stipulated that the Philippines would practice neutrality. Meaning, it could not go to war without the permission of the United States except when it had to protect itself. The Philippine Legislature ratified the Tydings-McDuffie law on May 1, 1934. From then on, Filipinos busied themselves with preparations for the establishment of the Commonwealth government.

Convention to Frame Constitution for Philippine Islands

Section 1. The Philippine Legislature is hereby authorized to provide for the election of delegates to a constitutional convention, which shall meet in the hall of the House of Representatives in the capital of the Philippine Islands, at such time as the Philippine Legislature may fix, but not later than October 1, 1934, to formulate and draft a constitution for the government of the Commonwealth of the Philippine Islands, subject to the conditions and qualifications prescribed in this Act, which shall exercise jurisdiction over all the territory ceded to the United States by the treaty of peace concluded between the United States and Spain on the 10th day of December, 1898, the boundaries of which are set forth in Article III of said treaty, together with those islands embraced in the treaty between Spain and the United States concluded at Washington on the 7th day of November, 1900. The Philippine Legislature shall provide for the necessary expenses of such convention.

Character of Constitutions — Mandatory Provisions

Sec. 2. (a) The constitution formulated and drafted shall be republican in form, shall contain a bill of rights, and shall, either as a part thereof or in an ordinance appended thereto, contain provisions to the effect that, pending the final and complete withdrawal of the sovereignty of the United States over the Philippine Islands —

- (1) All citizens of the Philippine Islands shall owe allegiance to the United States.
- (2) Every officer of the government of the Commonwealth of the Philippine Islands shall, before entering upon the discharge of his duties, take and subscribes an oath of office, declaring, among other things, that he recognizes and accepts the supreme authority of and will maintain true faith and allegiance to the United States.
- (3) Absolute toleration of religious sentiment shall be secured and no inhabitant or religious organization shall be molested in person or property on account of religious belief or mode of worship.
- (4) Property owned by the United States, cemeteries, churches, and parsonages or convents appurtenant thereto, and all lands, buildings, and improvements used exclusively for religious, charitable, or educational purposes shall be exempt from taxation.
- (5) Trade relations between the Philippine Islands and the United States shall be upon the basis prescribed in section 6.
- (6) The public debt of the Philippine Islands and its subordinate branches shall not exceed limits now or hereafter fixed by the Congress of the United States; and no loans shall be contracted in foreign countries without the approval of the President of the United States.
- (7) The debts, liabilities, and obligations of the present Philippine Government, its provinces, municipalities, and instrumentalities, valid and subsisting at the time of the adoption of the constitution, shall be assumed and paid by the new government.
- (8) Provision shall be made for the establishment and maintenance of an adequate system of public schools, primarily conducted in the English language.
- (9) Acts affecting currency, coinage, imports, exports, and immigration shall not become law until approved by the President of the United States.
- (10) Foreign affairs shall be under the direct supervision and control of the United States.
- (11) All acts passed by the Legislature of the Commonwealth of the Philippine Islands shall be reported to the Congress of the United States.
- (12) The Philippine Islands recognizes the right of the United States to expropriate property for public uses, to maintain military and other reservations and armed forces in the Philippines,

and, upon order of the President, to call into the service of such armed forces all military forces organized by the Philippine Government.

(13) The decisions of the courts of the Commonwealth of the Philippine Islands shall be subject to review by the Supreme Court of the United States as provided in paragraph 6 of section 7.

(14) The United States may, by Presidential proclamation, exercise the right to intervene for the preservation of the government of the Commonwealth of the Philippine Islands and for the maintenance of the government as provided in the constitution thereof, and

for the protection of life, property, and individual liberty and for the discharge of government obligations under and in accordance with the provisions of the constitution.

(15) The authority of the United States High Commissioner to the government of the Commonwealth of the Philippine Islands, as provided in this Act, shall be recognized.

(16) Citizens and corporations of the United States shall enjoy in the Commonwealth of the Philippine Islands all the civil rights of the citizens and corporations, respectively, thereof.

(b) The constitution shall also contain the following provisions, effective as of the date of the proclamation of the President recognizing the independence of the Philippine Islands, as hereinafter provided:

(1) That the property rights of the United States and the Philippine Islands shall be promptly adjusted and settled, and that all existing property rights of citizens or corporations of the United States shall be acknowledged, respected, and safeguarded to the same extent as property rights of citizens of the Philippine Islands.

(2) That the officials elected and serving under the constitution adopted pursuant to the provisions of this Act shall be constitutional officers of the free and independent Government of the Philippine Islands and qualified to function in all respects as if elected directly under such government, and shall serve their full terms of office as prescribed in the constitution.

(3) That the debts and liabilities of the Philippine Islands, its provinces, cities, municipalities, and instrumentalities, which shall be valid and subsisting at the time of the final and complete withdrawal of the sovereignty of the United States, shall be assumed by the free and independent Government of the Philippine Islands; and that where bonds have been issued under authority of an Act of Congress of the United States by the Philippine Islands, or any province, city, or municipality therein, the Philippine Government will make adequate provision for the necessary funds for the payment of interest and principal, and such obligations shall be a first lien on the taxes collected in the Philippine Islands.

(4) That the Government of the Philippine Islands, on becoming independent of the United States, will assume all continuing obligations assumed by the United States under the treaty of peace with Spain ceding said Philippine Islands to the United States.

(5) That by way of further assurance the Government of the Philippine Islands will embody the foregoing provisions [except paragraph (2)] in a treaty with the United States.

Submission of Constitution to the President of the United States

Sec. 3. Upon the drafting and approval of the constitution by the constitutional convention in the Philippine Islands, the constitution shall be submitted within two years after the enactment of this Act to the President of the United States, who shall determine whether or not it conforms with the provisions of this Act. If the President finds that the proposed constitution conforms substantially with the provisions of this Act he shall so certify to the Governor-General of the Philippine Islands, who shall so advise the constitutional convention. If the President finds that the constitution does not conform with the provisions of this Act he shall so advise the Governor-General of the Philippine Islands, stating wherein in his judgment the constitution does not so conform and submitting provisions which will in his judgment make the constitution so conform. The Governor-General shall in turn submit such message to the constitutional convention for further action by them pursuant to the same procedure hereinbefore defined, until the President and the constitutional convention are in agreement.

Submission of Constitution to Filipino People

Sec. 4. After the President of the United States has certified that the constitution conforms with the provisions of this Act, it shall be submitted to the people of the Philippine Islands for their ratification or rejection at an election to be held within four months after the date of such certification, on a date to be fixed by the Philippine Legislature, at which election the qualified voters of the Philippine Islands shall have an opportunity to vote directly for or against the proposed constitution and ordinances appended thereto. Such election shall be held in such manner as may be prescribed by the Philippine Legislature, to which the return of the election shall be made. The Philippine Legislature shall by law provide for the canvassing of the return and shall certify the result to the Governor-General of the Philippine Islands, together with a statement of the votes cast, and a copy of said constitution and ordinances. If a majority of the votes cast shall be for the constitution, such vote shall be deemed an expression of the will of the people of the Philippine Islands in favor of Philippine independence, and the Governor-General shall, within thirty days after receipt of the certification from the Philippine Legislature, issue a proclamation for the election of officers of the government of the Commonwealth of the Philippine Islands provided for in the constitution. The election shall take place not earlier than three months nor later than six months after the proclamation by the Governor-General ordering

such election. When the election of the officers provided for under the constitution has been held and the results determined, the Governor-General of the Philippine Islands shall certify the results of the election to the President of the United States, who shall thereupon issue a proclamation announcing the results of the election, and upon the issuance of such proclamation by the President the existing Philippine Government shall terminate and the new government shall enter upon its rights, privileges, powers, and duties, as provided under the constitution. The present Government of the Philippine Islands shall provide for the orderly transfer of the functions of government.

If a majority of the votes cast are against the constitution, the existing Government of the Philippine Islands shall continue without regard to the provisions of this Act.

Transfer of Property and Rights to Philippine Commonwealth

Sec. 5. All the property and rights which may have been acquired in the Philippine Islands by the United States under the treaties mentioned in the first section of this Act, except such land or other property as has heretofore been designated by the President of the United States for and other reservations of the Government of the United States, and except such land or other property or rights or interests therein as may have been sold or otherwise disposed of in accordance with law, are hereby granted to the government of the Commonwealth of the Philippine Islands when constituted.

Relations with the United States Pending Complete Independence

Sec. 6. After the date of the inauguration of the government of the Commonwealth of the Philippine Islands trade relations between the United States and the Philippine Islands shall be as now provided by law, subject to the following exceptions:

(a) There shall be levied, collected, and paid on all refined sugars in excess of fifty thousand long tons, and on unrefined sugars in excess of eight hundred thousand long tons, coming into the United States from the Philippine Islands in any calendar year, the same rates of duty which are required by the laws of the United States to be levied, collected, and paid upon like articles imported from foreign countries.

(b) There shall be levied, collected, and paid on all coconut oil coming into the United States from the Philippine Islands in any calendar year in excess of two hundred thousand long tons, the same rates of duty which are required by the laws of the United States to be levied, collected, and paid upon like articles imported from foreign countries.

(c) There shall be levied, collected, and paid on all yarn, twine, cord, cordage, rope and cable, tarred or untarred, wholly or in chief value of Manila (abaca) or other hard fibers, coming into the United States from the Philippine Islands in any calendar year in excess of a collective total of three million pounds of all such articles hereinbefore enumerated, the same rates of duty which are required by the laws of the United States to be levied, collected, and paid upon like articles imported from foreign countries.

(d) In the event that in any year the limit in the case of any article which may be exported to the United States free of duty shall be reached by the Philippine Islands, the amount or quantity of such articles produced or manufactured in the Philippine Islands thereafter that may be so exported to the United States free of duty shall be allocated,

under export permits issued by the government of the Commonwealth of the Philippine Islands, to the producers or manufacturers of such articles proportionately on the basis of their exportation to the United States in the preceding year; except that in the case of unrefined sugar the amount thereof to be exported annually to the United States free of duty shall be allocated to the sugar-producing mills of the Islands proportionately on the basis of their average annual production for the calendar years 1931, 1932, and 1933, and the amount of sugar from each mill which may be so exported shall be allocated in each year between the mill and the planters on the basis of the proportion of sugar to which the mill and the planters are respectively entitled. The Government of the Philippine Islands is authorized to adopt the necessary laws and regulations for putting into effect the allocation hereinbefore provided.

(e) The government of the Commonwealth of the Philippine Islands shall impose and collect an export tax on all articles that may be exported to the United States from the articles that may be exported to the United States from the Philippine Islands free of duty under the provisions of existing law as modified by the foregoing provisions of this section including the articles enumerated in subdivisions (a), (b) and (c), within the limitations therein specified, as follows:

(1) During the sixth year after the inauguration of the new government the export tax shall be 5 per centum of the rates of duty which are required by the laws of the United States to be levied, collected, and paid on like articles imported from foreign countries;

(2) During the seventh year after the inauguration of the new government the export tax shall be 10 per centum of the rates of duty which are required by the laws of the United States to be levied, collected, and paid on like articles imported from foreign countries;

(3) During the eighth year after the inauguration of the new government the export tax shall be 15 per centum of the rates of duty which are required by the laws of the United States to be levied, collected, and paid on like articles imported from foreign countries;

(4) During the ninth year after the inauguration of the new government the export tax shall be 20 per centum of the rates of duty which are required by the laws of the United States to be levied, collected, and paid on like articles imported from foreign countries;

(5) After the expiration of the ninth year of the inauguration of the new government the export tax shall be 25 per centum of the rates of duty which are required by the laws of the United States to be levied collected and paid on like articles imported from foreign countries.

The government of the Commonwealth of the Philippine Islands shall place all funds received in such export taxes in a sinking fund, and such funds shall, in addition to other moneys available for the purpose, be applied solely to the payment of the principal interest on the bonded indebtedness of the Philippine

Islands, provinces, municipalities, and instrumentalities until such indebtedness has been fully discharged.

When used in this section in a geographical sense, the term "United States" includes all Territories and possessions of the United States, except the Philippine Islands, the Virgin Islands, American Samoa, and the island of Guam.

Sec. 7. Until the final and complete withdrawal of American sovereignty over the Philippine Islands—

(1) Every duly adopted amendment to the constitution of the government of the Commonwealth of the Philippine Islands shall be submitted to the President of the United States for approval. If the President approves the amendment or if the President fails to disapprove such amendment within six months from the time of its submission, the amendment shall take effect as a part of such constitution.

(2) The President of the United States shall have authority to suspend the taking effect of or the operation of any law, contract, or executive order of the government of the Commonwealth of the Philippine Islands, which in his judgment will result in a failure of the government of the Commonwealth of the Philippine Islands to fulfill its contracts, or to meet its bonded indebtedness and interest thereon or to provide for its sinking funds, or which seems likely to impair the reserves for the protection of the currency of the Philippine Islands, or which in his judgment will violate international obligations of the United States.

(3) The Chief Executive of the Commonwealth of the Philippine Islands shall make an annual report to the President and Congress of the United States of the proceedings and operations of the government of the Commonwealth of the Philippine Islands and shall make such other reports as the President or Congress may request.

(4) The President shall appoint, by and with the advice and consent of the Senate, a United States High Commissioner to the government of the Commonwealth of the Philippine Islands who shall hold office at the pleasure of the President and until his successor is appointed and qualified. He shall be known as the United States High Commissioner to the Philippine Islands. He shall be the representative of the President of the United States in the Philippine Islands and shall be recognized as such by the government of the Commonwealth of the Philippine Islands, by the commanding officers of the military forces of the United States, and by all civil officials of the United States in the Philippine Islands. He shall have access to all records of the government or any subdivision thereof, and shall be furnished by the Chief Executive of the Commonwealth of the Philippine Islands with such information as he shall request.

If the government of the Commonwealth of the Philippine Islands fails to pay any of its bonded or other indebtedness or the interest thereon when due or to fulfill any of its contracts, the United States High Commissioner shall immediately

report the facts to the President, who may thereupon direct the High Commissioner to take over the customs offices and administration of the same, administer the same, and apply such part of the revenue received therefrom as may be necessary for the payment of such overdue indebtedness or for the fulfillment of such contracts. The United States High Commissioner shall annually, and at such other times as the President may require, render an official report to the President and Congress of the United States. He shall perform such additional duties and functions as may be delegated to him from time to time by the President under the provisions of this Act.

The United States High Commissioner shall receive the same compensation as is now received by the Governor-General of the Philippine Islands, and shall have such staff and assistants as the President may deem advisable and as may be appropriated for by Congress, including a financial expert, who shall receive for submission to the High Commissioner a duplicate copy of the reports to the insular auditor. Appeals from decisions of the insular auditor may be taken to the President of the United States. The salaries and expenses of the High Commissioner and his staff and assistants shall be paid by the United States.

The first United States High Commissioner appointed under this Act shall take office upon the inauguration of the new government of the Commonwealth of the Philippine Islands.

(5) The government of the Commonwealth of the Philippine Islands shall provide for the selection of a Resident Commissioner to the United States, and shall fix his term of office. He shall be the representative of the government of the Commonwealth of the Philippine Islands and shall be entitled to official recognition as such by all departments upon presentation to the President of credentials signed by the Chief Executive of said government. He shall have a seat in the House of Representatives of the United States, with the right of debate, but without the right of voting. His salary and expenses shall be fixed and paid by the Government of the

Philippine Islands. Until a Resident Commissioner is selected and qualified under this section, existing law governing the appointment of Resident Commissioners from the Philippine Islands shall continue in effect.

(6) Review by the Supreme Court of the United States of cases from the Philippine Islands shall be as now provided by law; and such review shall also extend to all cases involving the constitution of the Commonwealth of the Philippine Islands.

Sec. 8. (a) Effective upon the acceptance of this Act by concurrent resolution of the Philippine Legislature or by a convention called for that purpose, as provided in section 17:

(1) For the purposes of the Immigration Act of 1917, the Immigration Act of 1924 [except section 13 (c)], this section, and all other laws of the United States

relating to the immigration, exclusion, or expulsion of aliens, citizens of the Philippine Islands who are not citizens of the United States shall be considered as if they were aliens. For such purposes the Philippine Islands shall be considered as a separate country and shall have for each fiscal year a quota of fifty. This paragraph shall not apply to a person coming or seeking to come to the Territory of Hawaii who does not apply for and secure an immigration or passport visa, but such immigration shall be determined by the Department of the Interior on the basis of the needs of industries in the Territory of Hawaii.

(2) Citizens of the Philippine Islands who are not citizens of the United States shall not be admitted to the continental United States from the Territory of Hawaii (whether entering such territory before or after the effective date of this section) unless they belong to a class declared to be non-immigrants by section 3 of the Immigration Act of 1924 or to a class declared to be non quota immigrants under the provisions of section 4 of such Act other than subdivision (c) thereof, or unless they were admitted to such territory under an immigration visa. The Secretary of Labor shall by regulations provide a method for such exclusion and for the admission of such excepted classes.

(3) Any Foreign Service officer may be assigned to duty in the Philippine Islands, under a commission as a consular officer, for such period as may be necessary and under such regulations as the Secretary of State may prescribe, during which assignment such officer shall be considered as stationed in a foreign country; but his powers and duties shall be confined to the performance of such of the official acts and notarial and other services, which such officer might properly perform in respect to the administration of the immigration laws if assigned to a foreign country as a consular officer, as may be authorized by the Secretary of State.

(4) For the purposed of sections 18 and 20 of the Immigration Act of 1917, as amended, the Philippine Islands shall be considered a foreign country.

(b) The provisions of this section are in addition to the provisions of the immigration laws now in force, and shall be enforced as part of such laws, and all the penal or other provisions of such laws not applicable, shall apply to and be enforced in connection with the provisions of this section. An alien, although admissible under the provisions of this section, shall not be admitted to the United States if he is excluded by any provision of the immigration laws other than this section, and an alien, although admissible under the provisions of the immigration laws other than this section, shall not be admitted to the United States if he is excluded by any provision of this section.

(c) Terms defined in the Immigration Act of 1924 shall, when used in this section, have the meaning assigned to such terms in the Act.

Sec. 9. There shall be no obligation on the part of the United States to meet the interest or principal of bonds and other obligations of the Government of the Philippine Islands or of the provincial and municipal governments thereof,

hereafter issued during the continuance of United States sovereignty in the Philippine Islands: Provided, That such bonds and obligations hereafter issued shall not be exempt from taxation in the United States or by authority of the United States.

Recognition of Philippine Independence and Withdrawal of American Sovereignty

Sec. 10. (a) On the 4th, day of July immediately following the expiration of a period of ten years from the date of the inauguration of the new government under the constitution provided for in this Act the President of the United States shall by proclamation withdraw and surrender all right of possession, supervision, jurisdiction, control, or sovereignty then existing and exercised by the United States in and over the territory and people of the Philippine Islands, including all military and other reservations of the Government of the United States in the Philippines (except such naval reservations and fueling stations as are reserved under section 5), and, on behalf of the United States, shall recognize the independence of the Philippine Islands as a separate and self-governing nation and acknowledge the authority and control over the same of the government instituted by the people thereof, under the constitution then in force.

(b) The President of the United States is hereby authorized and empowered to enter into negotiations with the Government of the Philippine Islands, not later than two years after his proclamation recognizing the independence of the Philippine Islands, for the adjustment and settlement of all questions relating to naval reservations and fueling stations of the United States in the Philippine Islands, and pending such adjustment and settlement the matter of naval reservations and fueling stations shall remain in its present status.

Neutralization of Philippine Islands

Sec. 11. The President is requested, at the earliest practicable date, to enter into negotiations with foreign powers with a view to the conclusion of a treaty for the perpetual neutralization of the Philippine Islands, if and when the Philippine independence shall have been achieved.

Notification to Foreign Governments

Sec. 12. Upon the proclamation and recognition of the independence of the Philippine Islands, the President shall notify the governments with which the United States is in diplomatic correspondence thereof and invite said governments to recognize the independence of the Philippine Islands.

Tariff Duties After Independence

Sec. 13. After the Philippine Islands have become a free and independent nation there shall be levied, collected, and paid upon all articles coming into the United States from the Philippine Islands the rates of duty which are required to be levied, collected, and paid upon like articles imported from other foreign countries: Provided, That at least one year prior to the date fixed in this Act for the independence of the Philippine Islands, there shall be held a conference of representatives of the Government of the United States and the Government of the Commonwealth of the Philippine Islands, such representatives to be appointed by the President of the United States and the Chief Executive of the Commonwealth of the Philippine Islands, respectively, for the purpose of formulating recommendations as to future trade relations between the Government of the United States and the independent Government of the Philippine Islands, the time, place, and manner of holding such conference to be determined by the President of the United States; but nothing in this proviso shall be construed to modify or affect in any way any provision of this Act relating to the procedure leading up to Philippine independence or the date upon which the Philippine Islands shall become independent.

Immigration After Independence

Sec. 14. Upon the final and complete withdrawal of American sovereignty over the Philippine Islands the immigration laws of the United States (including all the provisions thereof relating to persons ineligible to citizenship) shall apply to persons who were born in the Philippine Islands to the same extent as in the case of other foreign countries.

Certain Statutes Continued In Force

Sec. 15. Except as in this Act otherwise provided, the laws now or hereafter in force in the Philippine Islands shall continue in force in the Commonwealth of the Philippine Islands until altered, amended, or repealed by the Legislature of the Commonwealth of the Philippine Islands or by the Congress of the United States, and all references in such laws to the government or officials of the Philippines or Philippine Islands shall be construed, insofar as applicable, to refer to the government and corresponding officials respectively of the Commonwealth of the Philippine Islands. The government of the Commonwealth of the Philippine Islands shall be deemed successor to the present Government of the Philippine Islands and of all the rights and obligations thereof. Except as otherwise provided in this Act, all laws or parts of laws relating to the present Government of the Philippine Islands and its administration are hereby repealed

as of the date of the inauguration of the government of the Commonwealth of the Philippine Islands.

Sec. 16. If any provision of this Act is declared unconstitutional or the applicability thereof to any person or circumstance is held invalid, the validity of the remainder of the Act and the applicability of such provisions to other persons and circumstances shall not be affected thereby.

Effective Date

Sec. 17. The foregoing provisions of this Act shall not take effect until accepted by concurrent resolution of the Philippine Legislature or by a convention called for the purpose of passing upon that question as may be provided by the Philippine Legislature.c

Approved: March 24, 1934.

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